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The Sikh Struggle

Origin, Evolution and Present Phase

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THE SIKH STRUGGLE
Origin, Evolution and Present Phase
by
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The Punjabi Suba

Inclusion of the Princely States

When the British decided to quit India, two fifths of the sub-continent populated by more than eighty millions were ruled by 562 Princely States who had never been absorbed into the Imperial Domain. Their relations with the British Crown were determined by direct treaties and they were sovereign States in principle. The sovereignty of these States remained a convenient element of the British sophistry against the Indian demand for self-rule, as they could argue that unless these States accepted and joined an All India Federation by ceding their sovereignty there could be no workable government of India. The position of the Congress was as S. Satyamurti, a member of the Central Legislative Assembly, postulated in the House on 17 September 1937: "Make a Federation of the eleven self-governing provinces. Keep the door open for Indian States to come in on agreed honourable conditions. Good States will come in sooner or later; bad States may not come in; it is best that they do not come in."

When Stafford Cripps arrived in India with the Draft Declaration of the British War Cabinet to promote a political settlement in India, one of the preconditions was the fulfillment of treaty obligations towards the Princely States. Even the Wavell Plan of June 1945 had assured the States that the proposals of transfer of power would not affect their independent relations with the Crown. But a sudden change in the attitude became perceptible when the Secretary of State for India announced the dispatch of the Cabinet Mission to India, following the election of the Labour party to the government,

in February 1946. The announcement referring to the Princely States said: "Discussions will also be undertaken with the representatives of the Indian States with a view to ascertaining in what way they can best take their part in the Constitution making body."

The problem of the States had been taxing the officials and the Congressmen in India who realized that with the lapse of the paramountcy of Britain they would in legal theory regain their sovereign status.

B.N. Rau, the constitutional Advisor to the Viceroy who later played an important role in the drafting of the Indian Constitution, was working on a outline of the future Constitutional structure of India in late 1945 and early 1946. His outline conceded that if Pakistan came about as a result of communal partition of the sub-continent, the Indian States too could justifiably claim to remain independent of the two domains. The Cabinet Mission tried to resolve the seemingly insurmountable problem with an approach that, without giving up the facade of legalism, relied more on the efficacy of political persuasion or pressure. "The relationship which has hitherto existed between the Rulers of the States and the British Crown will no longer be possible," the Cabinet Mission proclaimed. Stafford Cripps tried to drive home the harsh corollary of the lapse or abdication of relationship by the Crown in a Press Conference he addressed on 16 May 1946: "Paramountcy cannot be continued after the new Constitution comes into operation...nor can it be handed over to anyone else...They will therefore become wholly independent but they have expressed their wish to negotiate their way into the Union and that is a matter we leave to negotiations between the States and the British Indian parties." The Chamber of Princes was left under no illusion regarding its strength to negotiate with the British Indian parties. The letter the Mission addressed to the Chancellor of the Chamber of the Princes four days before the announcement of the plan at the press conference, said: "...His Majesty's Government's influence with these governments will not be such as to enable them to carry out the obligations...Moreover, they cannot contemplate that British troops would be retained in India for this purpose..."

The Chamber of Princes formed a Negotiating Committee of the States to discuss with the corresponding Committee of the representatives of British India. The Constituent Assembly appointed a Committee consisting of Jawaharlal Nehru, Maulana Abul Kalam Azad, Vallabhbhai Patel, Pattabhi Sitaramayya and N. Gopalswami Ayyangar to confer with the representatives of the States for their entry into the Assembly. In January 1947, the States adopted a resolution setting out the terms for their cooperation with the Constituent Assembly. The resolution said that each State reserved the right to decide whether to enter the Indian Union or not after making its own assessment of the Constitutional future of India. It proclaimed that the rights surrendered by the States to the British Crown would return to them following the lapse of British paramountcy, and India would exercise only such powers in relation to them as they ceded to it voluntarily through treaties. India must respect their territorial integrity, the custom of succession etc, and must not interfere in their internal administrations.

The negotiations between the two Committees, commencing on 16 January 1947, went on till March of that year. Mighty *nawabs* and *maharajas* demanded guarantees that their domains would not be done away with. Vallabhbhai Patel, his tough interior hidden behind the veil of humility, entreated: "...Nobody wants to do away with the States...No responsible person, no Congressman, has said 'we do not want you'...Let us sit together as friends, all interested in one India, and in your interest and in our interest we draw up a Constitution by agreement..."

Nehru struck the severe note as if to counteract Patel's affability: "Our whole object is that we should meet together and, in view of the developing circumstances, find a way out which is agreeable to the parties concerned. If, unfortunately, that way out is not found, then events would move and the compulsion of events will force us to do something..."

C.P. Ramaswami Aiyar, representing Travancore State, thought that Nehru was asking them somewhat abruptly possibly because of his unfamiliarity with princely etiquette, to set out the terms on which they would agree to join the Indian Union. He proceeded to do that with the solemnity befitting his incumbency: "...Let me, in

order to put matters beyond controversy indicate what for instance the Resolution asks on behalf of the Rulers. For instance, the entry of the States shall be on no other basis than that of negotiation and the final decision shall rest with each State. That is a matter which is beyond controversy and the thing has been laid down by the Cabinet Mission." Pattabhi Sitaramayya, the ever-inquisitive president of the Congress, interrupted Sir C.P. as he was popularly known, to ask: "Then why do you humiliate us with its reiteration when you think it is an absolute fact?" Sir C.P. realized that he had been a trifle too crass even by the Congress standards in stating the obvious and had probably hurt the self-esteem of the Congress leaders. But he did not yet want to relent: "It is because some of these absolute facts have been canvassed. There is no question of humiliation. There are serious propositions."

Jawaharlal Nehru interrupted him once again with a tone of brashness which Sir C.P. suspected betrayed an arrogant attitude. Nehru asked: "What are the propositions?" Sir C.P. decided to nail it down his head: "The final decision shall rest with the States."

Nehru started speaking excitedly: "So far as the Constituent Assembly is concerned, it is obvious that the state of things as they are in India is the result of operation of forces and nobody can stop the forces simply by passing a resolution. Are we discussing the Constituent Assembly or are we discussing the muzzling of forces in India."

Was he threatening? What did he mean by "muzzling of forces"? Sir C.P. decided to ignore the rabble-rouser for a while and directing his attention towards humble Patel, who had been silent, offered to read out the resolution. "I shall go through this and point out its innocuous character...", Sir C.P. began.

Patel interrupted him with a murmur. Sir C.P. had to strain himself a little to hear him. "It is not innocuous. It is an ultimatum. It should not have been done in that spirit. You should have called us and discussed it. You have not done it. You again started this morning in the same spirit in which you drafted the resolution. If you again argue in that same spirit..."

The negotiations did not break down and soon yielded results. Mountbatten, the first Governor General of India, inaugurating Indian freedom in the mid night session of the Constituent Assembly on 14/15 August 1947, commended the statesmanship of Sardar Patel for producing a scheme which appeared to him to be equally in the interests of the States as of the Dominion of India: "It is a great triumph for the realism and sense of responsibility of the Rulers and the Governments of the States, as well as for the Government of India, that it was possible to produce an Instrument of Accession which was equally acceptable to both sides..."

The Instrument of Accession was not acceptable to three States: Hyderabad in South India, Junagarh on the Western Coast between Bombay and Karachi, and Kashmir.

Junagarh was the tiniest of these States with a Muslim ruler and a population predominantly Hindu. The ruler realizing that he would not be able to maintain the independence of his State proclaimed its accession to Pakistan. India dispatched its troops to occupy the State in September 1947. The accession to Pakistan was reversed and Junagarh became a part of India.

Hyderabad was a large State bigger than Great Britain excluding Scotland with the population of fourteen million. The ruler of the State was a Muslim who had decided to retain the independence of his State. But Hyderabad too was occupied by Indian troops in September 1948 and was forced to accede to India.

Kashmir, a large State of 222,798 sq.kms with a predominantly Muslim population of nearly 4.5 million, in the north of India with its boundaries touching Afghanistan in the northwest, China in the northeast and Punjab and Himachal Pradesh in the South, was ruled by a Hindu Maharaja, who too wanted to remain independent of both India and Pakistan. However, when the Muslim population of the State rebelled against his rule demanding from him either to abdicate or to accede to Pakistan, the Maharaja after an emergency conference with the Indian leaders announced accession to India in October 1947. India flew in its troops into the valley of Kashmir to quell the rebellion. Pakistan retaliated by declaring war on India. Indian troops were able to hold the Pakistani soldiers by the "line

of control" which left nearly 138, 992 sq.kms of the State under Indian occupation. The war was terminated with the intervention of the United Nations following the Indian promise to hold a plebiscite to enable the people of Kashmir to decide the future of the State, a promise which India very proudly never kept. "Since Pakistan has not withdrawn its forces from 'Azad Kashmir', the part of the State under its occupation, there is no question of our holding the plebiscite. Kashmir is an integral part of India"—this became the official position.

Pepsu

The rulers of the Princely States of Punjab, fortunately for their people, displayed greater sense of realism than the States of Hyderabad, Junagarh and Kashmir. Eight of them, the most eminent being Patiala, signed a covenant constituting themselves into the Patiala & East Punjab States Union, short PEPSU, on 5 May 1948. V.P. Menon, the Constitutional Advisor to the Governor General and a confidant of Sardar Patel, the Home Minister, had taken special interest in bringing the Union of PEPSU about. Sikhs formed the majority of the population in the newly constituted Union—47.3 per cent in the census of 1941 which had gone up considerably following the influx of Sikh refugees from West Punjab. The ruler of Patiala, Yadavendra Singh, was sworn in as the *Rajpramukh*-Head of State-, a title reminiscent of the days of royalty. His efforts to form a composite ministry consisting of the heads of the States which had merged into the Union along with the representatives of both the Congress Party and the Akali Dal failed because the Congress insisted on having its own nominee as the Prime Minister which the Akali Dal could not agree to. It also insisted on having the same privilege. In a resolution it passed on 25 July 1948 the Akali Dal demanded that: "...the Akali Dal which alone represents the voice of Sikhs, should be called to form a ministry with the cooperation of other political parties."

The Issue of Linguistic States

But the Akali Dal was not invited. Master Tara Singh, the leader of the Party, denounced the Congress as an organization of Hindu reactionaries and threatened to launch an agitation to demand an

increase of Sikh recruitment into the army, the formation of a Punjabi speaking State and the safeguarding of the Sikh interests in PEPSU. During the first general elections held in February 1952, the Akali Dal took a clear stand calling for a reorganization of the Province on the basis of linguistic homogeneity into separate Punjabi and Hindi speaking States. Before Indian independence the Congress Party had also supported the demand. However, the Linguistic Provinces Commission, appointed to advise the Constituent Assembly on the reorganization of the Provinces, argued that the circumstances under which the Congress had committed itself to organize linguistic provinces had changed following the attainment of Indian independence. The Commission was under the Chairmanship of S.K. Dar, a former judge of the Allahabad High Court, who as a Kashmiri was personally acquainted with Nehru. The Dar Commission report submitted in December 1948 advised against the formation of linguistic states and was received with disappointment by all non-Hindu linguistic communities of India. Even Pattabhi Sitaramayya, the Congress President from Madras province, expressed unhappiness over the report. The Congress Party then appointed a high powered Committee consisting of Jawaharlal Nehru, Vallabhbhai Patel and Pattabhi Sitaramayya to review the report of the Dar Commission "in the light of the new problems that have arisen out of the achievement of independence."

The Committee came to the conclusion that: "It (i.e. the formation of linguistic States) would unmistakably retard the process of consolidation of our gains, dislocate our administrative economic and financial structure, let loose, while we are still in a formative state, forces of disruption and disintegration and seriously interfere with the progressive solution of our political and economic difficulties." (F.N. I)

The Akali Dal began to demand vigorously a Punjabi speaking state. The Hindu organizations reacted by appealing to the members of their community to formally disown the Punjabi language. A large number of Hindus in Punjab registered their language as Hindi in the census of 1951.

The Akali Dal fought the elections of 1952 on the plank of the Punjabi speaking State. In PEPSU the Akali Dal and the independ-

ents supporting it won a near majority. However, the Congress Party contrived to form a government led by Raghuvir Singh with the help of defectors from the Akali Dal. But the government was defeated on the first day the Assembly met on 6 April 1952. It was forced to resign when the Speaker of the Assembly himself crossed the floor to the side of the Akali opposition. It was now the Akali Dal's turn to form a government which was ushered in on 22 April 1952 with Gian Singh Rarewala as the Chief Minister. In February 1953, Rarewala's election to the Assembly was countermanded by the Election Tribunal on technical grounds. The State was brought under President's rule. In the next elections, the Congress Party won a slender majority in the Assembly. But it could not provide a stable government with a powerful lobby of the Akali Dal harrying it from the opposition.

As the agitation for the reorganisation of the provinces was gaining momentous throughout India, the Prime Minister announced in December 1953 the appointment of yet another Commission to "objectively and dispassionately examine the question." Saiyid Fazal Ali, then Governor of Orissa, was made the chairman. Kavalam Madava Panikkar, then Ambassador of India to Egypt, and Hriday Nath Kunzru, member of Council of States, were the other members. No Sikh sat in the Commission.

The Akali Dal, in its memorandum to the Commission, reiterated the case for the linguistic reorganization of Punjab. Hindu organization in the Haryana region signed a memorandum demanding a separate Haryana. The Communist Parties and the Praja Socialist Party also supported the demand. But the Hindu organizations in Punjab like the Arya Samaj, Hindu Mahasabha and Jana Sangh opposed the demand. These organizations wanted the creation of a greater State including the territories of PEPSU, Himachal Pradesh and Punjab. They argued that the demand for a Punjabi speaking State made by the Sikhs was a camouflage for the attainment of Sikh hegemony and a stepping stone towards the creation of a sovereign Sikh State.

The States Reorganization Commission in its report submitted in 1955 rejected the demands for the formation of a separate Punjab and Haryana and recommended the merger of the existing States of

Punjab, PEPSU and Himachal Pradesh into a single territorial unit. The Commission justified its recommendation by arguing that:

"The solution we have proposed offers the advantage that the precarious or uncertain political majority which they (the Sikhs) seek will be exchanged for the real and substantial rights which a sizeable and vigorous minority with a population ratio of nearly one third is bound to have in the united Punjab in the whole of which they have a real stake." Although the government let at abeyance the recommendation to create a greater Punjab, it decided to dissolve PEPSU and merge it into the Punjab. The decision was seen as a step to deny the Sikh majority in PEPSU the opportunity to elect a government of their own.

The recommendations of the States Reorganization Commission had given as much umbrage to the people of the Haryana region as to the Akali Sikhs of the Punjab. The people of the Haryana region which lies in the plain south of the river Ghaggar bordering Delhi, considered themselves discriminated against in comparison to the people in the northwestern districts of Punjab, predominantly Sikhs in the rural areas and Hindu traders in the cities. The Hindus of Haryana were largely peasants. Before the Mutiny of 1857, the area had been part of the North West Province, modern UP, from which it was disjoined following the Mutiny, for the reason that the feudal elements of the region had lent support to the rebels, unlike the Sikhs chiefs in Punjab who favoured the British. It was consequently parcelled out to Punjab and the princely states of Patiala and Jind. The measure was punitive in nature and intended to keep the volatile elements of the region in check. The agriculture of the Haryana region remained backward as the canal irrigation developed from the rivers of Punjab could not benefit it. Educational progress too remained tardy. Representation in government was under-proportional. Speaking in Parliament on 23 December 1955, Thakar Das Bhargava, a member elected from the Haryana region, cited some statistics to show the insufficient representation of his region in the government. I quote: "There are two Central Ministers from Punjab and both are from the Jullundhar Division. There are eight Ministers in the Punjab Cabinet, and out of them seven are from the Jullundhar Division, and only one from Haryana Prant. Both the Speaker and the Chairman of Punjab Legislature are from the Jullundhar Division. All the Three mem-

bers of the Public Service Commission are from the Jullundhar Division. All the three members of Subordinate Service Commission are from Jullundhar Division. All the eight members of Rajya Sabha elected from Punjab are from the Jullundhar Division. Of all the Lok Sabha members from Punjab, only two, Chaudhary Ranbir Singh and I myself are from Haryana. All the rest are from Punjab. In the Indian Administrative Service and the Indian Civil Service there are 24 persons and all are from Jullundhar Division. There are 15 Secretaries, Under Secretaries and Assistant Secretaries and all are from the Jullundhar Division. All the 13 Deputy Commissioners and 20 Superintendents of Police are from Jullundhar Division. Out of 347 gazetted officers, only 40 are from Haryana." (F.N.II)

Regional Formula

The leaders of the Haryana region as well as the Akali leaders headed by Tara Singh met the Central leaders including the Prime Minister to express their unhappiness over the report of the States Reorganization Commission. From their talks a compromise formula known as "Regional Formula" was evolved. The Formula provided for two separate committees of the legislators for the Punjabi and Hindi speaking regions. The Committees were empowered to scrutinize legislations proposed by the government that could affect their areas, and also to administer for their regions the economic development and the planning, local self-government, public health, primary and secondary education, agriculture, cottage and small scale industries, cooperative societies and religious endowments. The official language at the district level was to be the language spoken in the region. Education was to be carried out in the regional languages under the policy which had already been introduced by the first Chief Minister of the Province, Bhim Sen Sachar, in 1949. Hindi in Devanagari script and Punjabi in Gurmukhi script were both recognized as the regional languages. Punjabi was to be the medium of instruction in the Punjabi speaking districts in all the schools up to matriculation stage and Hindi in the Hindi speaking areas. The districts of Rohtak, Gurgaon, Karnal and Kangra and much of the Hisar district were deemed to constitute a Hindi speaking zone. The Punjabi speaking zone was to consist of Amritsar, Jullundhar, Gurdaspur, Ferozepur, Ludhiana and Hoshiarpur districts and some parts of Hissar, Ropar and Ambala districts.

Hindi Chauvinism

The Legislative Committee for the Punjabi speaking zone was to consist of 84 out of 154 members of the State Assembly. The Regional Formula which seemed to satisfy both the Punjabi speaking Sikhs and the people of the Haryana region was, however, opposed by the Hindu elements of Punjab who wanted Hindi alone to be recognized as the official language of the State. They viewed the Formula as an objectionable concession to the Sikhs. Various Hindu organizations got together under the banner of the Maha Punjab Samiti and started a violent campaign. Leadership was provided by Lala Jagat Narain, who had been an important leader of the Congress and controlled a chain of newspapers to propagate his cause. Slogans denigrating the Punjabi language were raised. Communal riots broke out in many towns. But the government's attitude towards the Hindu agitators remained fundamentally affable. In a letter addressed to Swami Atma Nand, a leader of the Hindi Samiti, in June 1967, Nehru wrote: "Can you believe that any of us, who are devoted to Hindi, can do anything which is injurious to the growth and development of our national language? Can you believe that this Regional Formula, in the slightest degree, comes in the way of the growth of Hindi?...I think, people living in the north should learn at least one South Indian language, and if possible more Indian languages. In Switzerland, three languages i.e. German, French and Italian are compulsory for every student...May I remind you of the present state of the country and the world. We face a grave economic crisis...In the world, the shadow of the hydrogen bomb hangs over us and from time to time test explosions take place poisoning the air and condemning untold numbers of the people to death and grievous injury in the future. What is our duty...I would beg of you and your colleagues to consider all these matters."

The obduracy of the local pro-Hindi agitators, intertwined with Hindu chauvinism of the central leaders, led the Akali Dal to revive its own agitation for the formation of a Sikh dominated State. The Dal argued that Punjab could not be denied the benefit of the principle on the basis of which several unilingual states had already been carved out. When Tara Singh gave a call to hold a rally in Delhi, to be followed by his own fast unto death, to demand formation of a Punjabi Suba (State) in March 1959, the government

decided to detain him preventively. The Congress Chief Minister of Punjab, Pratap Singh Kairon, wrote to the Prime Minister impressing upon him the need to keep Tara Singh and his colleagues behind the bars. His letter dated 25 January 1959 read: "...Master Tara Singh is mentally living in the 16th/17th century. He considers the State unequal to the supreme power of religion...Tara Singh is out to threaten and dominate the government by such slogans...For this reason, I am convinced that Tara Singh should be detained for two/three years along with his other fanatical colleagues..."

Hunger Strikes

Tara Singh revived the agitation when he came out of jail, in 1960. He was rearrested. Newspapers were prohibited from publishing news regarding the Sikh agitation. Raising slogans for a Punjabi Suba was made illegal. The Akali Dal moved its headquarters to a room in the Golden Temple complex in Amritsar. A police officer who had been posted outside to keep a watch on the movement of the agitators was murdered by a person who later escaped inside the temple. For the first time in independent India police entered the Guru Ramdas Sarai—rest house—inside the temple complex, which became Bhindranwale's fortress later in 1982.

The government was showing a tough and unyielding attitude towards the agitation for the formation of a Punjabi Suba. Nehru told the correspondent of the Times of London that he would not concede a Punjabi speaking State even if he had to face a civil war.

While Tara Singh was still in jail, Sant Fateh Singh started a fast unto death on 18 Dec. 1960. Prime Minister Nehru declared in the Parliament on 31 Dec that the creation of a Punjabi Suba was detrimental to the national interest and would not be agreed to. Fateh Singh broke his fast after twenty two days of starvation. Tara Singh who in the meanwhile had been released by the government had persuaded him to believe that the Prime Minister had changed his attitude and was ready to negotiate. Fateh Singh met the Prime Minister several times thereafter. Nothing came of these meetings. Tara Singh consequently announced that he would undertake a fast unto death beginning on 15th of August 1961. Nehru addressed a letter to Tara Singh. I quote: "...If I may say with all respect to you, the method of fasting for a political objective is not a right method

and the consequences surely will also not be right. (Out of quote: We must wonder whether he had not derived this principle from his experience of Gandhi's fasts and their consequences) I have given, as I must, the deepest thought to what you and Sant Fateh Singh have told me...I cannot agree to it because I was and am convinced that that would do harm to Punjab and to the Sikhs... If I feel strongly about this matter, you will not expect me to act against my conscience and thinking..."

Tara Singh commenced his fast. A leader of the Arya Samaj, Swami Rameshwaranand who was a member of Parliament, started a counter fast unto death. Nehru announced that he would under no circumstances agree to the creation of the Punjabi Suba and wrote to Swami Rameshwaranand requesting him to give up his hunger strike. The Swami gladly obeyed.

Tara Singh was 76 years old. He starved for 48 days. His spirit or probably his body flagged and he broke his fast on 1 Oct. 61. This, however, marked his political death. The Akali Dal expelled him from the party. The head priests of the Golden Temple imposed on him the punishment to clean the shoes of devotees who came to the shrine. He lost the leadership to Sant Fateh Singh who kept up the agitation until the war with China broke out in 1962.

Prime Minister Nehru died two years later on 27 May 64 from, as is sometimes believed, the psychological breakdown he suffered after India's humiliating defeat by China. The Chief Minister of Punjab, Pratap Singh Kairon, who was as stoutly opposed to the Akali agitation as Pundit Nehru himself, resigned from his post on 14 June 1964, after a Commission of Inquiry led by a former judge of the Supreme Court indicated him on charges of corruption. Kairon fell eight months later to the bullets of an assassin, who trapped him on the highway when he was returning to Chandigarh in his car after a meeting with the Congress High Command.

Now that both Nehru and Kairon were dead, Sant Fateh Singh decided to try his luck again by announcing another fast from 10 September 1965 with the gruesome addition that he would immolate himself on a pyre already prepared inside the Golden Temple, if hunger did not kill him within fifteen days.

The situation on the Pakistan-Kashmir border was already tense. Fateh Singh referred to the possibility of a war with Pakistan, but refused to give up his resolve because, as he said: "country is dear but Punjabi Suba is dearer." However, he had to postpone his plans when Pakistani media started referring to them as suggestive of a Sikh insurgency against the Indian State. Apparently the new Prime Minister Lal Bahadur Shastri had come to an unofficial deal with the Akali leadership that their demand would be granted if they caused no nuisance until India had taken care of the challenge from across the border.

Formation of the Punjabi Suba

On 22 Sep. 65, the day following the declaration of cease fire by India and Pakistan, after their 14 days of inconclusive warfare, the Home Minister of India announced in Parliament that a Parliamentary Committee under the chairmanship of the Speaker of the Lok Sabha and a Cabinet Committee consisting of Y.B. Chavan, the Defence Minister, Mrs. Gandhi, the Minister for Information and Broadcasting, and Mahavir Tyagi, Minister for Rehabilitation, were being formed to resolve the outstanding problem of reorganization of Punjab.

The Congress Legislative Party decided to keep away from the proceedings of the Parliamentary Committee. The decision helped the Akali Dal to represent its case before the Committee without a strong opposition. The Cabinet Committee became defunct when Lal Bahadur Shastri died in Tashkent where he had gone to sign a peace treaty with Pakistan under Russian auspices on 11 Jan. 1966, and Mrs. Gandhi became the next Prime Minister.

The Congress Working Committee passed a resolution favouring the creation of a Punjabi speaking state, as demanded by the Akali Dal, in a meeting held on 9 March 1966. The Parliamentary Committee under the Chairmanship of Hukum Singh submitted its report on 18 March 1966, recommending the creation of linguistically homogeneous states, Punjab and Haryana. A Boundary Commission was formed to give effect to the recommendations under the chairmanship of Justice J.C. Shah, a sitting judge of the Supreme Court. The Commission suggested that the area which

had already been demarcated as Hindi speaking under the second Schedule of the Punjab Regional Committee order of 1957 might be constituted as an independent Haryana State. The Commission tried to appease the Hindu sentiments by granting Chandigarh to Haryana and by recommending joint control of the irrigative and power potential of Punjab's river waters, under the authority of the Central government. It further suggested that those hilly regions of Punjab which were culturally and linguistically closer to Himachal Pradesh be merged into the latter. The government accepted the recommendations with a minor change. Chandigarh was declared to be a Union Territory consisting of the joint capital for the new states of Punjab and Haryana. The new State of Punjab with an area of 50255 sq. kilometers, organized into eleven administrative districts and a population of 14 million out of which 55.48 per cent were Sikhs, came into existence under the Punjab Reorganization Act No. 31 of 1966 on September 18, 1966.

On the day the Punjabi Suba was proclaimed, furious Hindu mobs in the state ran berserk. Hindu-Sikh clashes took place in many towns. Government offices and vehicles were attacked and burnt. A curfew was imposed in Amritsar. In Panipat, three veteran Congressmen were burnt alive. These Congressmen, Kranti Kumar, D.C. Thakkar and Sant Ram Lamba, had been close associates of Bhagat Singh, a revolutionary of Punjab in the days of anti-imperial struggle.

Hindus in the Punjab no longer considered the Congress Party to be a defender of their nation. Their agitation, however, ceased quickly because it was only supported by the Hindus within the new State of Punjab, whereas the Hindus in Himachal Pradesh and Haryana saw little reason to complain.

But the Sikh leadership was not satisfied. They complained that large tracts of Punjabi-speaking areas had been given away to Haryana and Himachal Pradesh; that the State had been deprived of Chandigarh, built to become Punjab's capital, and also that the Centre had usurped its right to manage its river water irrigation. On 5 Dec 1966 Fateh Singh announced his decision to commence a fast from December 17 and to immolate himself on December 27 if his demands, namely to sever all ties with Haryana and Himachal

Pradesh, to include Chandigarh and other Punjabi speaking area into the State, and to transfer control of irrigation and the electricity generated from the rivers of Punjab to the State, were not accepted by the Centre.

Fateh Singh started his fast as announced. After ten days he broke his fast as Mrs. Gandhi promised to intervene to settle the issue.

Notwithstanding the unhappiness among Sikh leaders over the terms of the reorganization of Punjab, it was a progress for them because the State was now not only Punjabi speaking but also predominantly Sikh. This was precisely the aspiration of the Akali Dal which the Congress government under Nehru had wanted to thwart. Ashok Mehta, a leader of the Praja Socialist Party, had seen through the reason behind Nehru's adamant refusal to form a Punjabi speaking State. He wrote in an article published in the *Tribune* of 31 May 1961: "No one can fairly blame the Sikhs if they concluded that the real reason for not creating the Punjabi Suba is that it would be the one State without a Hindu majority". Actually, if the criterion of linguistic homogeneity had been honestly applied to reorganize Punjab, the population of the State would have still remained predominantly Hindu. Many districts of Punjab like Ambala and Karnal which went to Haryana and the hilly subdivision of Hoshiarpur and Gurdaspur districts and Simla which went to Himachal Pradesh were and are in fact Punjabi speaking. But the Hindu organizations and political parties including the Congress had campaigned from 1951 onwards and successfully persuaded a large majority of Punjabi speaking Hindus to register their mother tongue as Hindi. It was this mischief played by Hindi chauvinists which now boomeranged on them. The so-called linguistic reorganization of the State became its communal truncation.

The Democratic Drift

The Sikhs found themselves in a situation of numerical pre-dominance in the State. It was an outcome which they could not have visualized even twenty years ago. Before 1947, Sikhs formed only 15 per cent of the total population of Punjab against 55 per cent of Muslims and 30 per cent of Hindus. Forced migration of Muslims

from East Punjab to Pakistan and influx of Sikh refugees from West Punjab changed the demographic character of the State after the partition of 1947. However, they were still only 40 per cent of the population. With their reorganization into a politically autonomous region of the Union in 1966 they became roughly 60 per cent. In the context of numbers within the democratic system of India, their dominance also as a political unit seemed to have become viable for the first time. It had not really.

In the two consecutive elections to the State Assembly held after Punjab's reorganization, the Akali Dal romped home with a sufficient number of seats to form coalition governments with parties like the Bhartiya Jana Sangh and the Communist parties. But these were untenable coalitions. The Bhartiya Jana Sangh in particular, being a Hindu communal party, continued as the arch antagonist of the Akali Dal. The Communist parties, on the other hand, always changed their tactics, sometime sympathetic to Akali demands, sometimes belligerent, depending on what helped them to woo away the peasantry from the latter's fold. Yet these coalitions were inevitable.

Although the percentage of votes which the Akali Dal had secured in 1967 had significantly gone up in comparison to what it had got in the third general election in 1962-24.1 per cent in 1967 in comparison to 11.9 per cent in 1962- it could secure only 26 seats in the State Assembly whose total strength was 104. The Congress Party, on the other hand, had still managed to get 43 seats. Even the combined strength of all the non-Congress parties in the legislature was not enough to form a government. Yet a coalition government came about. Some members of the Congress Party and a block of independent legislators joined the gratuitous alliance. It was their chance to become ministers in a government which could not be formed without defectors.

This government was pulled down eight months later by the Congress Party which organized counter defections. Even during its short lease of life, it could hardly govern. All it achieved was to set new precedents in parliamentary corruption and filibuster. I will give some examples.

In the first session of the new Assembly in February 1967, convened to elect the Speaker of the House, three Congress Party members voted for the candidate sponsored by the ruling coalition. The had been bought over. The Congress Party did not sit idle. During this very session, the official motion of thanks to the governor for his address to the Assembly was defeated in favour of an amended version which the leader of the Congress opposition in the Assembly introduced. The Deputy Speaker of the House, Mr. Baldev Singh, himself voted against the official motion. To forestall a no-confidence motion against the government, the Chief Minister Gurnam Singh persuaded the Speaker to adjourn the House. When the House reassembled on 6 April 1967, the opposition demanded that the Chief Minister should step down and threatened to move a no-confidence motion. The Speaker suspended the House sine die without putting the official motion for adjournment to vote.

The House assembled again only when six more Congress legislators—Balwant Singh, Baloo Ram, Gurmeet Singh, Satnam Singh Bajwa, Jagtar Singh and Shiv Chand—were made ministers. This happened on 4 May 1967, a day before the House had to be convened for the Budget Session. On the first day of the Budget Session, the Deputy Speaker of the House, Mr. Baldev Singh, who had voted against the official motion of thanks to the governor, was physically manhandled by Lachman Singh Gill, the Minister for Education. In the row that followed the House was once again adjourned.

But now Lachman Singh Gill, who had shown his Akali "loyalty" by beating up the Deputy Speaker for voting with the opposition, was himself carrying out negotiations with the Congress leaders to topple the government and to form an alternative government in alliance with the Congress, with himself as the Chief Minister. On 22 November 1967, Gill made the announcement that he together with sixteen legislators was breaking out of the United Front government. The Akali Dal Chief Minister, Gurnam Singh, had to resign.

Lachman Singh had old associations with the Congress Party. Until 1937 he was a member of the Party and had "courted" arrest three times to show that he was in the "freedom struggle". Gill was

sworn in as the Chief Minister on 25 November 1967. One member of his ministry was Jagjit Singh Chauhan, who would later proclaim Khalistan.

This government, which lasted for nine months, outdid the previous one in throwing all legislative etiquette to the dogs. On 6 March 1968, when the Budget Session of the Legislative Assembly opened, the Treasury Bench sponsored a motion of no-confidence against the Speaker who had been elected under the previous government. Gurnam Singh, the leader of the opposition called the motion illegal. The Speaker upheld the objection and declared the motion of no-confidence against himself void *ad initio*. Undeterred by this, Congress supporter of the government moved a fresh motion of no-confidence. The Speaker not only survived the onslaught but precipitated a crisis unparalleled in the legislative history of India by a move of adjourning the House for two months.

The Budget for the financial year of 1968 had not been passed. The implication was that the government would become *nihil ad rem* after 31 March as it could not transact financial business, not even for the departmental functioning without its Demands for Grants having been approved by the Legislature. The Governor tried to rescue the Government from the impending doom by cancelling the order of the speaker. He issued a Ordinance reconvening the House to transact the financial business of the State without interruptions. When the Assembly met on 14 March 1968, as the Governor's Ordinance required it, the leader of the opposition challenged the order as being unconstitutional. The Speaker upheld the contention and walked out of the Assembly after ruling that the House stood adjourned as before. Pandemonium broke loose inside the august Assembly. Many ministers and members got injured in the fist fight that followed. One Akali member tried to stab Darbara Singh, the future Chief Minister destined to become Bhindranwale's arch enemy, with the dagger that Guru Govind Singh had enjoined upon him to carry. Darbara Singh was rescued in the nick of time. Policemen entered the Assembly and beat up the legislators who were causing the disorder. They had been called in to restore parliamentary propriety. The opposition members were dragged out of the House. The Deputy Speaker proclaimed that the House was in session. The Finance Minister, Jagjit Singh Chauhan, moved

the official Demands for Grants. They were sanctioned "unanimously".

The extravaganza wasn't over yet. Satyapal Dang, the leader of the Communist Party, who had been a Cabinet Minister in the earlier United Front Government and had been dropped from the new Coalition, moved a writ petition in the Punjab and Haryana High Court challenging the constitutional validity of the Ordinance by which the House had been convened to pass the Financial Bills. A Bench of five judges presided over by the Chief Justice of the High Court heard the petition and delivered its judgement on 10 May 1968. The order said: "We hold unanimously that the Appropriation Act No. 1 of 1968 and the Appropriation Act No 2 of 1968...are *ultra vires* of the Constitution and hence invalid and, further by a majority we hold that Punjab Ordinance No 1 of 1968 is *ultra vires* of the Constitution."

The government had been decreed to have become infectious with retroactive effect. The State government filed an appeal against the judgement before the Supreme Court of India which ultimately reversed it. By then the Congress legislative party had withdrawn its support from the government and forced it to resign. The State was brought under President's rule on 23 August 1968.

A mid term poll to elect a new Assembly took place in February 1969. The Akali Dal, baffling as it may seem, substantially improved its strength in the Assembly. For the first time in the history of Punjab the Akali Dal emerged as the single largest party. It secured 43 seats. Clearly the party had emerged as the instrument of the ethno-economic aspirations of the Sikh peasantry. The Akali Dal could not, however, form a government on its own as it still did not have an absolute majority in the House. Once again it roped in the non-Congress legislators into a coalition and formed a government with Gurnam Singh as the Chief Minister.

Coalition governments in one form or another had become an unavoidable aspect of Punjab politics. Political power had to be shared by the representative parties of the two dominant communities in proportion to their numerical strength. This applied also to the Congress governments which ruled the State from 1972

to 1977 and from 1980 to 1985. In the Assembly which was elected in 1972, 59 per cent of the Congress legislators were Sikhs, and in 1980 it was 44 per cent. The Akali Dal formed one more government in coalition after winning the elections in alliance with the Janata Party in 1977. Even in 1985, when the Akali Dal secured a clear majority in the Assembly by winning 73 out of 117 seats, it could not run the government without the backing of the Congress Party. In terms of votes won in the State Assembly election, the Akali Dal had an edge of less than over one per cent over the Congress in 1985-38.54 per cent over 37.6 per cent. Coalition governments had become a compulsion immanent in the demographic constitution of the reorganized Punjab. The second government under Gurnam Singh in 1969 fell after thirteen months of ineffectual rule. A sudden wave of defections from his ranks reduced its supporters to a minority. After a period of intense lobbying and horse trading, Prakash Singh Badal, the leader of a moderate faction in the Akali Dal, managed to put together a bagatelle of a government which collapsed after fifteen months. On 13 June 1971 the Punjab Assembly was dissolved for the second time within four years.

Disillusionment

These experiments in government, ludicrous as they may seem, were, however, not without serious implications for the future. It began to dawn upon the rank and file of the Akali Dal that governments formed by them in the State under the prevailing circumstances were not only going to remain open to blackmail by the unreliable partners of an inevitable coalition, but would also remain susceptible to manipulations by the Congress Party backed by the Centre. Any government formed under the existing set-up was doomed to expend itself in the exertions to survive against the subversive manipulations of the opposition parties. The experience of government had produced only one important outcome for the Akali Dal: Its leaders had been corrupted to betray the objectives which they had championed for decades. The power which they bandied in the government, though far from absolute, had corrupted them absolutely. What disappointed the workers and sympathizers of the Party most was their leaders failure to intervene effectively when Darshan Singh Pheruman went on a fast unto death for the transfer of Chandigarh to Punjab. Beginning his

fast on 15 August 1969, he died seventy four days later. Darshan Singh Pheruman was a respected Sikh leader who had come under the influence of the Ghadar Party, launched by India expatriates in the USA and Canada, when he was in Malaya in the early twenties. He returned to India to organize revolutionary groups to overthrow the British government. He was arrested on a number of occasions and spent more than thirteen years in jails before India attained independence. He represented the Sikh cause before the Cabinet Mission in 1946 which had come to India to discuss the modalities of the transfer of power. He was a member of the All Parties Council of Action which had been formed to oppose the dismemberment of Punjab. Later he was elected to the Upper House of Parliament for three terms from 1952 to 1964, as a founding member of the Swatantra Party. Though not in the Akali Dal, he chose to die for a cause which it had most vociferously advocated as a plank for its election to the government in February 1969. When the Central government refused to hand over Chandigarh to Punjab even after Darshan Singh's death, the Akali Dal government could at least have resigned in protest. Evidently, principles and party objectives had ceased to count for much to the leaders.

The demand for the transfer of Chandigarh, which remains unresolved to this day, is part of a larger territorial dispute and has the potential to arouse deep emotions in the Punjabi people over the steady loss of their territorial identity beginning from the time of India's independence.

The oldest human settlements located in the flood plains of the river Indus, which mark the beginnings of civilization in the subcontinent, as well as the archaeological remains of the later Indus Valley cities of Harappa and Mohenjodaro which stand to show a developed civilization in India even before the advent of the Aryans, were lost to Pakistan in 1947. The sites at which the forces of Alexander of Macedonia had been contested by ancient Punjabi armies; Lahore, near which their first Guru was born and which had been the capital of Punjab for nearly one thousand years and in particular the seat of Ranjit Singh's powerful empire—all of this land was severed from India when it was partitioned. The capital of post-partition Indian Punjab was moved from Lahore to Simla, the

summer capital of British India, while Jawaharlal Nehru himself supervised the construction of Chandigarh, which he got designed by Le Corbusier and other famous avant garde architects, to compensate the Punjab for its loss of Lahore. Chandigarh became the Capital of Punjab. But in 1966 it was declared a Union Territory while Simla was give away to Himachal Pradesh. The Boundary Commission which had recommended the areas to go to the unilingual states of Punjab and Haryana had used the census of 1961 as its basis. The census was admittedly defective and it expressed communal mischief of Hindus who, as already mentioned, had their mother tongue registered as Hindi although in fact they spoke only Punjabi. It was on the basis of this census of 1961 that the Commission had recommended the transfer of Chandigarh to Haryana. The government had, however, decided to keep it as a Union territory for the joint capitals of both Punjab and Haryana. The Akali Dal pledged that the party would strive to secure Chandigarh for Punjab. Following Darshan Singh Pheruman's death from hunger strike for transfer of Chandigarh, Sant Fateh Singh, the leader of the Akali Dal, directed his partymen in the government to resign from the government. When they prevaricated, he himself went on a hunger strike on 26 January 1970. Three days later Mrs. Gandhi gave an award announcing the transfer of Chandigarh to Punjab and the formation of an expert committee to decide which other Punjabi speaking areas in Haryana, Himachal Pradesh and Rajasthan should be merged back into the State, and which Hindi speaking areas in Punjab should be transferred to Haryana. The actual transfer of Chandigarh, according to the award, was to take place in or before January 1975. Nineteen years have passed since. Chandigarh remains a Union Territory and the joint capital of Punjab and Haryana.

NOTES

- I. Report of the Linguistic Provinces Committee, Indian National Congress p.9
- II. Lok Sabha Debate on States Reorganization Commission Report. (pp.1119-1122)

River Waters : The Elemental Issue

The issue which agitated the Sikhs probably even more than the territorial dispute was what the Akali Dal called the unjust and illegal allocations of Punjab's river waters by the Central government to its non-riparian neighbour States under section 78 of the Punjab Reorganization Act. The issue not only has a direct bearing on the future of agriculture in the State, the occupation of more than eighty per cent of its population, it also evokes historical nostalgia of an extinct glory of the land which was indivisible from the confluence of its five rivers.

The name Punjab, as we know, means the land of five rivers: Punj = five, Ab = waters. In the early Aryan period the region was known as Sapta Sindhu or the land of seven rivers in Sanskrit. The Persian form of the name was Hafta Hinda. The seven rivers were the Sindhu, Jhelum, Chenab, Ravi, Beas, Sutlej and Saraswati. The river Saraswati disappeared much before the Greeks appeared on the scene of Punjab. Probably because of the five rivers Sindhu, Jhelum, Chenab, Ravi and Sutlej have a common confluence near Uch in present day Pakistan, the land got the name Punjab. Already the Greeks called it *Pentapotamia*, *penta* meaning five and *potamos* meaning river. The Punjab's hydro-geographical unity remained unaffected until the partition of India in 1947 disrupted it.

Sikh refugees from the Pakistani West Punjab into the Indian East Punjab had left behind more acreage of well-irrigated agricultural land than Muslim migrants to Pakistan had relin-

quished in India. The government of India allotted to every refugee family a plough unit of ten acres without bothering which of them had left behind how much. According to the Council of Sikh Affairs, a group of prominent Sikh citizens based in Chandigarh, the old Punjab had about 170 MAF (million Acre Feet) of water (F.N. I). Within months of the partition of Punjab in 1947, a dispute developed between the two independent countries from their conflicting claims of rights over the rivers of Punjab. —

Radcliff's Award

With the partition of the subcontinent the canals and the headworks on the rivers of Punjab built to develop the region as a natural unit became the demarcating lines of its irremissible dismemberment. Had the Congress and the Muslim League not resiled from the Cabinet Mission Plan the unity of Punjab's irrigation system would have been preserved. Even after the partition of India had been formally accepted during the viceroyalty of Mountbatten, the Chairman of the Partition Commission, Cyril Radcliffe, who realized that the irrigation system developed assiduously over the past century not only represented the geo-political unity of the Indus basin but also that its continued integration was essential to the economic well-being of the region, tried to persuade Nehru and Jinnah to maintain the river water system as a joint venture to be managed by both the governments. Both Nehru and Jinnah rewarded him for the suggestion with a severe rebuff. Jinnah told him that he would rather do with the deserts of Pakistan than have fertile lands irrigated with the help of a Hindu India. Nehru accused him of playing politics and told him not to bother about what India would do with its rivers. Radcliffe got on with his job and flew back to England on August 15 after truncating the country which until that day had been united by thousands of years of history and culture and common aspects of nature. Leonard Mosley reports Radcliffe muse over the episode years later: "Amazing people. They had absolutely no conception. They asked me to come in and do this sticky job for them, and when I had done it they hated it. But what could they expect in the circumstances? Surely, they must have realized what was coming to them once they had decided on partition. But they had made absolutely no plans for coping with the situation. Strange chaps. Just didn't do their homework."

Many Western Scholars see Radcliff's award as partial to India and put it down to Mountbatten's friendship for Nehru. The most striking example cited to prove this partiality is the case of Gurdaspur and Ferozepur and Zira towns which were awarded to India contrary to the terms of reference of the Commission.

Interdominion Agreement

Following the partition of the sub-continent, India and Pakistan signed a "standstill agreement" on 18 December 1947 which guaranteed to maintain water supplies at the level of allocation in the pre-partition days. However, on 1 April 1948 India without any warning cut off supplies to Pakistan from both Ferozepur and Gurdaspur. The action was contrary to the letter and the spirit of the international law covering inter-state rivers waters. The Barcelona Convention of 1921 on interstate river waters to which India was a signatory disallowed every State to stop or alter the course of a river, which flowing through its own territories went into a neighbouring country and also forbade to use its waters in such a way as to imperil the lands in the neighbouring State or to impede their adequate use by the lower riparians. But India as the upper riparian of the Indus rivers was in a position of strength. India could deflect the Beas into the Sutlej above Bhakra. Divert the Ravi into the Beas at Madhopur. It could construct a dam on Wular lake in the Kashmir valley and dry up the river Jhelum. A headwork on the Chenab at Dhiangarh, north of Jammu, could deflect the Chenab from its natural course into Pakistan. The major projects of the Bhakra, Pong and Thein dams then in the offing, if completed could drain off the rivers of Sutlej, Beas and Ravi. In fact the work on the Bhakra dam commenced in April 1948. The dam was conceived to have the enormous storage capacity of eight MFA (million acre feet) of water. By cutting off supplies from the Madhopur and Dipalpur Canal headworks, India jolted its Muslim neighbour into the realization of the formidable Hindu power. A ministerial delegation from Pakistan rushed to Delhi to negotiate the restoration of waters. India insisted on a recognition by Pakistan that it had proprietary rights over the eastern rivers and compelled Pakistan to sign an agreement on 4 May 1948, requiring it to deposit in the Reserve Bank of India an amount of money specified by the Indian Prime Minister before the supplies could be restored. The terms of

this agreement are important and will help us to understand in the right perspective the current riparian dispute among the Indian states. I reproduce relevant parts of the agreement known as the 'Interdominion Agreement':

1. The contention of the East Punjab Government is that under the Punjab Partition (Apportionment of Assets and Liabilities Order 1947, and the Arbitral Award) the proprietary rights in the waters of the rivers in the east Punjab vest wholly in the East Punjab government and that the west Punjab government cannot claim any share of these waters as a right.
2. The East Punjab government has revived the flow of water into these canals on certain conditions of which two are disputed by West Punjab. One which arises out of the contention in para 1, is the right to the levy of seigniorage charges for water and the other is the question of the capital cost of the Madhopur Headworks and carrier channels to be taken into account.
3. Without prejudice to its legal rights on the matter, the East Punjab government has assured the West Punjab government that it has no intention suddenly to withhold water from West Punjab without giving it time to tap alternative sources. The West Punjab government on its part recognises the natural anxiety of the East Punjab government to discharge the obligation to develop areas where water is scarce and which were underdeveloped in relation to parts of West Punjab...
4. The West Punjab government has agreed to deposit immediately in the Reserve Bank of India such ad hoc sum as may be specified by the Prime Minister of India. Out of this sum, that government agrees to the immediate transfer to East Punjab government the sums over which there is no dispute.³

Two important points of the agreement to take note of are (a), the dispute was treated as one existing between East and west

Punjab being co-riparian States; and (b), the question of diverting Punjab rivers for irrigation to other States of India did not figure in the agreement.

Lilienthal's Initiative and the Indus Water Treaty

Pakistan after signing the agreement tried to refer the dispute to the International Court of Justice. But India, which had already started constructing barrages over the confluence of the Beas and the Sutlej, upstream of Ferozepur at Hrike, as well as at the dam site of Bhakra, resisted the attempt. As the dispute seemed to involve the fate of millions of people and a peaceful and negotiated settlement was out of sight, the famous American magazine Collier's (discontinued since 1957) sponsored David E. Lilienthal, erstwhile Chairman of Tennessee Valley Authority and Chairman of the US Atomic Energy Commission, to undertake a fact-finding tour of India and Pakistan and to report how the imbroglio could be resolved. Lilienthal wrote about his impressions for the magazine in a series of articles the first of which appeared in its issue of 4 August 1951. He wrote: "The starting point should be, then, to set to rest Pakistan's fears of deprivation and a return to desert. Her present use of water should be confirmed by India, provided she works together with India in a joint use of their truly international river basin on an engineering basis that would also assure India's future use as well... This objective, however, cannot be achieved by the countries working separately; the river pays no attention to partition - the Indus, she 'just' keeps rolling along through Kashmir and India and Pakistan. The whole system must be developed as a unit designed, built and operated as a unit as in the seven state TVA system back in the USA.

"...Such planning of the water resources (and the accompanying potential electric power) of the Indus Basin is nothing new; it was for generations largely a function of British trained Indian engineers of the State of Punjab. They saw the river basin as a unit, as it is in nature. Then partition, politico-religious instrument, fell like an axe, and colleagues who had worked together all their lives elbow to elbow, separated because they were Hindu and Sikh, or Moslem. Partition did not repeal engineering or professional principles among these engineers; It merely made them secondary, for a while to politics and emotion."⁴

The President of the International Bank of Reconstruction and Development, in short the World Bank, Eugene R. Black, read Lilienthal's article and immediately contacted him for suggestions as to how India and Pakistan could be made to accept his proposals. After initial consultations between the two, Black addressed letters to the Prime Ministers of the two countries offering the good offices of the Bank for negotiations for a settlement of the Indus Water dispute. Black was able to persuade the two countries to come across for a talk beginning from May 1952. Meetings continued intermittently for many years without the prospect of an agreement coming into sight. The Bank then suggested a proposal as the basis for a settlement assigning the waters of the three western rivers to Pakistan and those of the three eastern rivers to India. Pakistan pointed out that the flow of the Western rivers without the facility for storage of water as India had developed at Bhakra dam would fail to meet the water requirement at critical sowing periods. Required by the Bank to show how it proposed to utilize waters of the three Eastern rivers, India conjured up a scheme allocating 8.0 MFA to Rajasthan, 7.2 MFA to Punjab and 0.5 MFA to Kashmir. The allocation to Rajasthan, a non-riparian State was more than the combined total allocation of water to Punjab. In order to show that the two riparian States had no objection the government forced an interstate agreement signed by the governments of Punjab, Rajasthan and Kashmir showing the utilisation by the three States in predetermined quantities. For a while some of the technocrats and politicians involved in the negotiations gave free reign to their fancies imagining the deserts of Rajasthan transformed into fertile lands.

Appraisal of the Rajasthan Canal

Soon after signing the interstate agreement of 1955 India had started work on the ambitious project of the Rajasthan Canal, with a feeder of 292 miles lined all along with two criss-crossed layers of baked tiles set in concrete sand mortar, with the estimated cost of 500 million dollars. No proper assessment and feasibility studies had been carried out before commencing the work. When the government asked a team of the US Bureau of Reclamation to examine the project in 1958, the team made the report: "In order to make a comprehensive study of a project calling for the irrigation

of 4.5 million acres of land, it would be necessary for the Bureau of Reclamation to devote years of time making land classification, agricultural economics and settlement studies... The team is of the opinion that further investigations would have been highly desirable prior to initiation of construction."⁵

Alloys A. Michel, the author of "The Indus Rivers - A Study of the effects of partition", made his own assessment of the project and came to the following conclusion. I quote: "Viewed realistically the Rajasthan Project in its ultimate form is a dubious one... The ideal of extending the Rajasthan Canal parallel to the Indo-Pakistan border in the northern portion of the Thar Desert down to a point about opposite the Sukkur Barrage was a seductive one: 7.9 million acres could be brought under command and 6.7 million of these are potentially cultivable although the project in its present form is limited to supplying water to only 4.5 million acres of which only 3.5 million would be cultivated in a given year. Even then, these lands will receive only 1 cusec (F.N.II) of water for each 250 to 300 acres, an intensity lower than what has prevailed in the Punjab since the British times (1 cusecs for 200 acres) and less than one third of what prevails in the US... Assured by her geographical position and later by the treaty of the full use of the Eastern Rivers, India naturally sought an area to irrigate, an area in which to demonstrate that free India could do as much as the British in bringing new lands under cultivation. Forgotten or overlooked were the fundamental differences between the Punjab, with its convergent perennial streams, tapering doabs and silty soil, and the Thar desert, Hundreds of miles from the Sutlej with its sand and sand dunes. The cumulative irrigation experience in India, Egypt, the US, and the Soviet Union indicates that more food and fibre can be obtained by increasing the water allowance to existing cultivated lands than by spreading water thin over new tracts... But to introduce it into the Thar Desert in economically unjustifiable. The 8.8 MAF of Beas-Sutlej-Ravi water that are to be diverted from Harike for the Rajasthan canal could be put to much better use in the East Punjab, north and the south of the Sutlej, and in the eastern margins of Rajasthan served by the Bikaner Canal and Sirhind Feeder. Combined with concentrated application of the limited fertilizers at India's disposal, yields in the established areas could be doubled or trebled at a saving in cost and pain in Rajasthan. The very experi-

ence with the Bhakra project itself, which increased water supplies to 3.3 million acres south of the Sutlej demonstrates this. Yet even here, out of every 182 run into a canal, 112 are lost by seepage, evaporation and nonbeneficial transpiration of plants. On the Rajasthan canal, although the lining will reduce seepage in the main canal to a minimum, evaporation alone might reduce supplies by 50 per cent. And the seepage losses in the unlined branch canals, distributaries, minors, sub-minors, water courses, and on the bunded fields themselves will further reduce the share of water that can be used beneficially by plants of economic value..."

Both the US Bureau of Reclamation and the author of the "The Indus River" criticized India in severe terms for undertaking a costly project to irrigate the lands which like all desert lands are highly porous and deficient in organic matter without first carrying out the basic soil surveys and the studies on land classification. They warned that the consequence of persisting with the project for the sake of pride by negating the technical and the economic values could be plain frustration in the end.

Mr. Richpal Singh Gill, who was the Secretary of the Beas Project in 1962, and has been associated with the development of many big irrigation projects in the country, explained to me in April 1989 that the Rajasthan project has been a failure. Waterlogging and salinity in the areas irrigated by the canal have found no remedy. Absence of natural drainage is yet another hurdle and unless artificial drain or channels falling into the Sutlej are created, which will in turn pollute the Sutlej river, salts and alkali from waterlogging will soon poison the upper horizon of the canal irrigated lands. He also told me that Rajasthan has not been able to find any use for the 8.54 MAF of water allocated to it under the interstate agreement of 1955. The average annual use by Rajasthan is still only 4.9 MAF, out of which nearly half is lost in the process. The rest of the water is just going waste.

Riparian Principles

According to Daljit Singh, a retired civil servant and a spokesman of the Council of Sikh Affairs, the allocations of Punjab's river waters among various Indian States, under the arbitration of the Central

government, have been violative of the well established terms of the riparian laws which have been the basis for the settlement of both international and interstate disputes on river waters. I asked him to explain to me the law of the riparian right. He cited a plethora of case laws and authorities which I found too intricate to understand. I shall reproduced here some facts which I have since absorbed with the help of books on the subject.

Dr. F.J. Berber who studied the treaties, compacts and disputes involving international and interstate rivers between 1950-1954 explains in his book "Rivers in International Law" (Stevens Sons Limited, London 1959) the meaning of the riparian right in intelligible terms: "(It is) the principle of community in the waters by virtue of which the rights in waters are either vested in the collective body of riparians or are divided proportionally; no one State can disposed of the waters without the positive cooperation of the others."

The Helsinki Rulers of 1966 adopted by the International Law Association explain that each Basin State is entitled, within its territory, to a reasonable and equitable share in the beneficial uses of the water of an international drainage basin, equitability being determined by many facts including the past utilisation of the waters of the Basin and the existing utilisation, the economic and social needs of each Basin State, the avoidance of unnecessary waste in the utilisation of waters of the Basin etc.

The case of the Jordon River dispute seemed clear enough to me. It involved Lebanon, Syria, Jordon and Israel. Israel which is a riparian State in relation to the Jordon river prepared a scheme of irrigation from its own share of the river's waters contemplating diversification outside the watershed area of the river. Other riparian State raised objections and the United Nations intervened to stop Israel from implementing its scheme. This was in 1953. The United Nations then requested the Tennessee Valley Authority to prepare a scheme which could ensure the most efficient method of utilising the whole of the watershed in the best interests of the area disregarding the political boundaries. The TVA prepared a scheme which was based on the following principle explained in the introductory

note to its report: " ...A quantity of water is suggested for each area of use within gravity reach of the supply made available and at the lowest cost... The reasonable needs of all in-basin users in the riparian states must be provided for before out of basin users can be considered..."

The theory and the practise of riparian law, I was convinced, would support a positivistic suggestion such as the one Daljit Singh makes that a State can claim share of a river's waters only if the river flows through its territories. But in the Indian history of riparian disputes I found one example of trans-basin diversification of a river's waters. The example is worth cursory examination here.

Madura, a district of the Madras Presidency, was hit by severe famine in the late 1850s due to scanty rainfall year after year. The only river passing the city of Madura, the Vaigai, which is a 240 Kms long stream rising in the Varushanand Hills flowing into the Pal Strait, the inlet of the Bay of Bengal between southeastern India and northern Sri Lanka, at Attangarai, had dried up. The Secretary of State for India approached the kindom of Travancore in South Western India with the request to permit the Madras Presidency to build an artificial reservoir in its kottayam district by damming the river periyar, the main river of the Travancore State, for diversion of its waters through a tunnel into the Vaigai river mainly to bring waters to the parched lands of Madura.

On 29 October 1886 an agreement was signed between the Secretary of State for India in Council as Lessee and the Maharaja of Travancore as Lesser. The agreement allowed Madras to build the reservoir on 8100 acres of land in the catchment basin of the Periyar river and also the tunnel to diversify its waters into Vaigai for an annual rent of Rs. 40,000. The arrangement lasted without any controversy till 1937 when the Madras government mooted a scheme to generate hydro-electric power from the flow of Periyar from the tunnel into its own territory. Travancore objected to the scheme on the ground that the indenture of 1886 did not permit use of Periyar's waters for any purpose other than irrigation of Madura. The dispute went before a retired judge of the Calcutta High Court for arbitration who in his award given in May 1941 upheld the ob-

jection raised by Travencore as being valid. The two governments concluded a new agreement after Indian independence by which Madras acquired the right to harness hydro-electrical power from Periyar's waters by paying Rs. 12 per kilowatt year (F.N. III) generated by it if the units in year did not exceed 350 million and Rs. 18 per kilowatt a year for units generated in excess. In May 1970 the government of Tamil Nadu had the annual seigniorage of Rs. 40,000, as in the indenture of 1886, reduced to Rs. 30,000 by giving up fishing rights in the Periyar reservoir. Other conditions of the original agreement remained in full force.

The points which emerge as general principles from this example are:

1. A State which commands a river exclusively can sell its waters for use outside the Basin.
2. It does not cease in its riparian right over the waters so diversified and can claim additional seigniorage from the lessee State if the later decides to harness the waters for additional benefits.
3. Cessation of political sovereignty of a riparian State does not lead to annulment of its riparian rights.

The history of the development of canal irrigation in India, particularly in the Punjab, indicates that the law of riparian right evolved not only from the legalistic approbation to the claims of sovereignty of the geopolitical units over the natural resources they commanded but also from the legalistic apperception of the rationality of their development.

For example, in the early stages of the British initiative to exploit the rivers of the Indus Basin for canal irrigation, the State of Patiala approached the British government with the proposal to meet the expenses for the surveys to build the Sirhind Canal on the river Sutlej mainly to irrigate its own agricultural tracts. Colonel Dyas, then Chief Engineer of the irrigation works for the North Western Provinces, after studying the proposal made by the State of Patiala submitted a memorandum to the government laying down one of the basic principles which continued to guide the develop-

mental policy of river waters until India attained independence. The memorandum said: "If a larger extent of Patiala than of British territory can be irrigated from the Sutlej with the same quantity of water at a smaller cost, it would appear to me that the Sutlej was intended for irrigation of Patiala..." When the project of the Sirhind Canal was finally ready for implementation, an agreement was signed between the British Government and the States of Patiala, Jhindh and Nabha on 18 February 1873 setting out the main following terms for sharing of the irrigation potential of the Canal:

1. The project is to be drawn out under the exclusive control of the British Government on the general basis of taking the water in the most economical manner to those districts east of the Sutlej to which it can from an engineering point of view most advantageously be carried.
2. The States concerned shall pay to the British Government an annual sum as seigniorage on the Sutlej water supplied in proportion to the quantity to the of water allotted to each.

Seigniorage was imposed also on Bikaner, a non-riparian State, when under the Sutlej Vally Project it was agreed to extend irrigation to the State. The agreement between the British Government and the States of Bikaner and Bahawalpur was concluded on 4 September 1920.

The riparian principles found articulate expression in the report prepared by the Indian Irrigation Commission which had been appointed by Lord Curzon to recommend measures for extending canal irrigation as a protection against recurring famines in 1901. The Commission advised the government to intensify irrigation in Punjab to produce a grain surplus there to be exported to the famine affected area instead of attempting to diversify waters of the Indus outside the Basin.

The government of India Act 1919 granted autonomy to the provinces in the subjects of river waters and irrigation. The Central government retained the power to intervene only if disputes between co-riparian States could not be settled through mutual consultations. The government of India Act of 1935 further consoli-

dated the provincial powers to control the waters of all rivers within their territories as well as the hydro-electrical power generated from them. Accordingly, when a dispute developed between Sind and Punjab, as co-riparian States in relation to the Indus rivers, over their conflicting claims of rights of utilisation for the river waters, the government appointed the Indus Commission in September 1941 under the chairmanship of B.N. Rau on which the Central Government was not represented at all. The Commission conducted its proceedings with Sind as the plaintiff and Punjab as the defendant arguing their cases. The Commission reviewed their arguments by the standards of riparian principles and concluded that the projects of Punjab be examined from the point of view of their effect on the co-riparian States. The Commission ordered Punjab to share the costs of the projects in Sind, concluding that the inundation irrigation of Sind had already been damaged by excessive withdrawals from the Indus rivers for projects in Punjab, the upper riparian.

The Indian Statute on River Waters

The Constitution of free India retained the principle of provincial autonomy in the subject of river waters. The Central government only acquired the power to advise and adjudicate through legally constituted River Boards and Tribunals on disputes involving co-riparian states. Article 246(3) enjoined with the Entry 17 of List II of the State Subjects confers on the State Legislatures the power to legislate in respect of their "waters": irrigation, canals, drainage, embankments, water storage and water power. Article 162 gives absolute executive powers to the State governments to administer the subjects over which their legislatures have the power to legislate. Article 246(1) enjoined with Entry 56 of List I of the Seventh Schedule confers on the Union the power to legislate and regulate on waters only of inter-state rivers and river valleys. Article 262 gives the power to the Union Parliament to make laws to adjudicate disputes or complaints with respect to the use, distribution or control of inter-state river waters or river valleys. Armed with these constitutional powers the Union Parliament enacted several legislations specific to interstate rivers and river valleys.

The River Boards Act of 1956 empowers the Union government to set up River Boards for Inter-State rivers with the objective to

“advise the States... in particular on questions relating to the co-ordination of their activities... with a view to the resolution of inter-state conflicts.” The Statement of Objectives and Reasons appended to the River Board Bill, 1955, before it was passed as an Act by parliament had categorically stated the following: “Water being a State subject, it is necessary that the initiative and responsibility for development of interstate rivers and river valleys primarily rest on the State governments... while it is necessary to ensure that the powers of the State governments in relation to inter-state rivers and river-valleys remain unaffected, it is also necessary to make suitable provision for resolving conflicts among the state governments and for achieving maximum results in respect of conservation, control and optimum utilisation of water resources of inter-state rivers.”

It is obvious that under the Act, the Union has no power to intervene in matters of a State river or even an inter-state river or river valley if there is no interstate dispute.

Another Legislation passed by Parliament in 1956 - the Inter State Water Disputes Act, 1956 - empowers the Union government to arrange for adjudication of inter-state water disputes if the conditions mentioned below obtain:

1. The dispute “or difference” must be between two or more State governments.
2. It must not relate to “any matter which may be referred to arbitration under the River Boards Act”.
3. The dispute must be with respect to (a) the use, distribution or control of the waters of any inter-state river or river valley, or (b) the interpretation of the terms, or the implementation, of a subsisting agreement relating to the condition (a)
4. It becomes justiciable only when the “interests” of the complaining State in the waters have been, or are likely to be affected prejudicially.

Politics Against The Law

However, following the reorganization of Punjab in 1966, the Central government acquired the authority under the Punjab Reorganization Act 1966 to determine the rights and the liabilities of Punjab and Haryana in regard to the Bhakra Nangal and the Beas Projects. The Central government also constituted the Bhakra Nangal and Beas Management Board (B.B.M.B.) for the administration, maintenance and operation of these projects.

Daljit Singh, the spokesperson of the Council of Sikh Affairs, points out that these powers acquired by the Central government under the Punjab Reorganization Act, 1966, are violative of the Indian Constitution which makes amply clear that it has no authority to allocate waters from the rivers of a State which flowed only in its territories to non-riparian claimant states or even to manage them. River waters under the Constitution is a State subject. In 1966, the Central government had asked both Punjab and Haryana to come to an agreement on the sharing of a river's waters within two years of their constitution. In 1976, during the period of Emergency when most of the Akali leaders were in jails, the Prime Minister Indira Gandhi gave an award allocating 3.5 MAF of water from the Ravi Beas project to each Haryana and Punjab and 8.00 MAF of water from Punjab's rivers to Rajasthan. Before the reorganization of the States, the region of Haryana had been receiving 0.9 MAF from the same projects. The Council of Sikh Affairs claims that the award was absolutely unconstitutional and without a precedent. The Council points out that when the State of Madras was bifurcated, it had lost all rights to the waters of the Krishna and Panner rivers, because Madras became non-riparian in regard to these rivers which, after the bifurcation, belonged to Andhra State alone. In another case, a tribunal presided over by a sitting judge of the Supreme Court of India had observed: "Rajasthan, being a non-riparian State in regard to Narmada, cannot apply to the Tribunal because under the Act only a co-riparian State can do so."

Mrs. Gandhi had given her award during the period of Emergency when the democratic process in the country was under suspension. In the general elections held in March 1977, Mrs. Gandhi's Congress Party was defeated. The Akali Dal in alliance

with the Janata Party formed a coalition government in Punjab. The government moved a petition in the Supreme Court of India, challenging the Constitutional validity of the award as well as the sections 78 and 80 of the Punjab Reorganization Act by whose mandate the Union government had arrogated to itself the authority to allocate Punjab's river waters to its non-riparian neighbours. The petition was admitted and was still pending in the court when in 1980 Mrs. Gandhi's Congress Party staged a comeback to capture power at the Centre as well as the States in the northern India. In 1981 Mrs. Gandhi persuaded the Chief Ministers of Punjab and Haryana to withdraw their cases against the award of 1976 from the Supreme Court, while she was still negotiating with the leaders of the Akali Dal who were carrying out their agitation with the river water dispute as one of the main issues.

"Are you still not satisfied that the Central government is discriminatory and unjust towards Sikhs? "Daljit Singh asked me after he had finished narrating these facts to me.

A Candid View

I had more questions for him to answer:

Is it not so that more than seventy per cent of the net area sown in the Punjab—the highest in India—is already under irrigation? Bhakra Nangal Dam alone covers 550,000 hectares of cultivable land in Punjab. Besides subsoil water resources are under extensive use in the State through tube wells and electrical and diesel run pumping sets. How can Punjab so adamantly refuse to share its river waters with its successor State, Haryana, and more significantly with Rajasthan, whose requirement of water is much more immediate and acute than Punjab's? Only 38 per cent of cultivable land in Haryana was under irrigation at the time of its formation compared to 70 percent of Punjab's. Rajasthan, the desert State of India, has more than 150,000 sq. kilometers out of its total area of 342,267 sq. kilometers under the cover of the Thar desert where hundreds of people die annually from thirst. Only eleven per cent of its cultivable land is under irrigation, most of it by wells. Does Punjab's insistence to have all its river waters to itself follow from a logical estimate of its water requirement or is it an expression of

a political greed which has been foisted on the State by the Akali Dal?

The answers which Daljit Singh gave me were peremptory, stressing facts and, significantly, making little concession to my appeals to fraternity among Indian peoples. The following is an attempt to convey the gist of his exposition:

Punjab was a deficit State in food production for some years after the partition of 1947. But soon it became India's food bowl because the enterprising peasants of the State adopted the system of multiple cropping which depended on, fortunately available, intensive irrigation. Wheat-paddy rotation, alternating with cultivation of cash crops like sugarcane and potatoes which is the key to the Green Revolution in Punjab, depended on assured irrigation of five to six acre feet of water per acre. With its cultivable area of 10.5 million acres, Punjab's water requirement for agriculture is 50 to 60 MAF. The total availability of waters from the Sutlej, Beas and Ravi rivers is only 37 MAF, which is 23 MAF short of its actual requirement. To make up for the deficiency, they have had to depend on tubewell irrigation whose costs are prohibitive, specially if pump sets are run on diesel instead of electricity. The most dangerous aspect of this dependence on sub-soil water is that the source is getting fast depleted. If the depletion of sub-soil water is not checked, the process will lead to the advent of semi-arid conditions in Punjab. Over-exploitation of subsoil water must therefore be checked immediately. Every drop of Punjab's river water resources must be saved for the requirement of its peasantry. The State has no river water to give away to its non-riparian neighbours.

But what, I again asked, should Haryana do and particularly Rajasthan, which is by nature an arid State? Where should they get their water requirements from?

Every State must accept its own geographical and natural status, Daljit Singh said. Every State inherits a number of deficiencies which can be surmounted only by human enterprise. Did I know about the irrigation systems which ancient Egypt, Babylonia and China had developed, he asked. The Chinese had built a massive

dam, Tu-Kiang, which irrigated 500,000 acres through thousands of kilometer long canals in 100 B.C. The Persians had developed underground sources of water by digging tunnels several hundred feet deep into the surface. Or take the case of Israel in our own times. The large tracts of land in the south of that country lie in a sub-tropical zone with just about one inch of average annual rainfall. But they have built this Israel National Water Carrier system which irrigates the desert regions through canals linked to lake Tiberias, located in the north on the borders of a hostile Syria. They are also working on schemes of cloud seeding and desalinization of Dead Sea waters.

Rajasthan, he continued, is in comparison to Israel better equipped with hydro-geographical resources. May be much cannot be done about its desert land in the northwest. One of the Himalayan rivers Ghaggar loses itself in its sands. But large underground water resources in the Thar desert have been identified by the Rajasthan Underground Water Board. With human will and enterprise they can be exploited to meet the water requirements of the State. Land in the east of Rajasthan is comparatively fertile. The State has been receiving about 3 MAF of water from Punjab's rivers. Much of it has been going waste. Also Rajasthan has hardly made use of the irrigation potential of its own rivers. The Chambal flows through its south-eastern parts. The Banas, which rising near Udaipur flows down to the plains in the northeast of the State to converge in the Chambal near Savai Madhopur, has many tributaries like Jowari, Sukri, and Jagari which can all be dammed for irrigation. Banganga is yet another tributary river of the Yamuna which rises near Jaipur. These water resources, if adequately utilized, will irrigate more than one third of its cultivable land. So why drain Punjab's river water resources while doing next to nothing to exploit its own rivers and underground water deposits? Moreover Rajasthan need not aspire to become an agriculture State because Punjab is one. The State is naturally gifted with chemical and mineral resources. It can develop an industrial economy by exploiting its mineral wealth. In all probability its desert will yield a great wealth of petroleum.¹

Punjab, on the other hand, survives only on the economics of its agriculture. It neither has mineral resources nor any heavy industries. It only has its land, its rivers and its hard working farmers. With just about two per cent of India's total cultivable land, Punjab

has been contributing more than 30 per cent of the country's total output of foodgrains. Why break up your own food bowl? Why rob the river waters from the State which are its only natural resources?

Daljit Singh was much more summarily dismissive of Haryana's claims, which he says are completely spurious and are formulated out of spite and jealousy to hurt Punjab's interests. Interestingly enough, the views of Dr. D.R. Chaudhary, Director, Institute of Haryana Studies, at Rohtak in Haryana, corroborate the assertion of Daljit Singh. Chaudhary says: "Between 1.5 to 2 MAF of Haryana's allocation of Yamuna water is utilised by Delhi and UP. Strangely enough, Haryana's opposition parties in their struggle for getting Haryana's shares of water have maintained studied silence on a big chunk of its share of water being utilised by Delhi and UP."

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4. Collier's 128. August 4, 1951. pp 56-57.
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NOTES

- I. One acre foot is the amount of water necessary to cover one acre = 4840 sq. yards or 43,560 sq. feet to a depth of one foot.
- II. One cusec is equivalent to one cubic foot of water released in one second.
- III. A kilowatt year is equal to 8,760 kilowatt hours.

ANANDPUR SAHIB RESOLUTION: State Autonomy or Sikh Separatism

Disaffection with the Centre

The frustrating experience in the State government between 1967 and 1971 motivated the Akali Dal to take up the tortuous issue of Centre-State relations. The Centre had engineered defections from the ranks of the party to bring down its governments in the state. It had infringed upon the autonomous powers of the provincial government even in those areas of administration which were both constitutionally and effectively for the rest of the country State subjects. The government of India, with its Hindu predisposition, could neither give justice to the Sikh people nor allow the party which embodied their aspirations to wield political power. A search for expression and exercise of State autonomy became an imperative of the Sikh political aspirations.

A radical group looked out for foreign sources of help for the cause of an independent Sikh State. Soon after the collapse of the government under the Chief Ministership of Prakash Singh Badal in June 1971, a team of Sikh delegates under the leadership of Jagjit Singh Chauhan, the Finance Minister in the government of Lachman

Singh Gill, went out on a tour to the USA and Europe to present the 'true plight' of Sikhs in India before Western audiences.

Chauhan, a medical practitioner from Hoshiyarpur district, who had been a member of the State Assembly since 1955, also went to Pakistan when the war between India and Pakistan broke out later that year. Chauhan was shown on the Pakistani television receiving the keys of Nankana Sahib, the famous Sikh shrine at the birth place of Guru Nanak near Lahore, from Yahya Khan, the military dictator of Pakistan. The gesture of publicity marked Pakistan's basic sympathy with the visionaries of an independent Sikh State. At the same time the Indian army was poised to invade East Pakistan, helping the insurgents to liberate it as an independent Bangladesh.

India worsted Pakistan in the war. East Pakistan became sovereign Bangladesh. Mrs. Gandhi was hailed as an incarnation of the goddess Durga who, in Hindu iconography, rides a tiger to war against her demoniac enemies. In the wave of her popularity, the Congress Party swept the polls both for Parliament and the State Assemblies held in 1972. In Punjab, Zail Singh, who later promoted Bhindranwale, the prophet of Khalistan, became the Chief Minister.

During his chief Ministership from 1972 to 1977, Zail Singh, once himself a religious preacher, went to absurd lengths in sponsoring religious gimmickry, hoping thereby to wean away the religiously extrovert supporters of the Akali Dal to the fold of the Congress. Zail Singh had been actively involved in the Congress manipulations to bring down the Akali Dal-led governments before him. He understood that the Sikh political mind was in ferment and tried to channel its energies into the fervour of religion. He got the universities, hospitals, roads and towns of Punjab rechristened after Sikh Gurus. He had a 400 kms long highway constructed to link up all the important religious shrines associated with the travails of Guru Govind Singh. He also ensured adequate representation - 60 per cent - to Sikhs in the Congress legislative party.

In spite of his insight into the explosive Sikh mood and all his religious stratagems to mollify it, Zail Singh was not alert to the political direction it was beginning to take.

In October 1973, the Working Committee of the Akali Dal adopted a policy resolution in a conference held at Anandpur which demanded that the Central government should actualize the federal concept of India by granting autonomy to the provincial governments in all areas except defence, foreign relations and currency. The unpublished Punjabi version of the resolution ✓ described Sikhs as a nation and demanded structural arrangements within which Sikhs would have a predominant role in the administration of the State. The English translation of the resolution released formally by the Party in 1977 contained two interesting references, one relating to India's foreign policy and the other demanding a change in the licensing policy for firearms. Strongly denouncing the foreign policy of India, the resolution said: "It is worthless, hopeless and highly detrimental to the interests of the country, the Nation and mankind at large....It (i.e. the Akali Dal resolution) strongly advocates a policy of peace with all neighbouring countries, especially those inhabited by the Sikhs and their sacred shrines (a reference to Pakistan). The Akali Dal is of the firm view that our foreign policy should in no case play second fiddle to that of any other country." The latter reference was clearly towards Soviet Russia. Demanding abolishment of licensing policy for arms the resolution said: "...All those persons male or female who have not been convicted of a criminal offence by a court of law, should be at liberty to possess all types of small arms, like revolvers, guns, pistols, rifles, carbines etc., without any license, the only obligation being their registration."

This document, under attack now as being secessionist, was curiously enough ignored altogether for many years after it was adopted in October 1973. The CPI in Punjab, whose leader Satyapal Dang maintains that the true purport of the resolution is to establish "a theocratic Punjab within India with a very weak Centre and with no common economy which may become a stepping stone for the creation of Khalistan outside India", had not only entered into an electoral alliance with the Akali Dal for the elections in 1980, but had also supported the agitation launched by the Akali Dal in 1981 in its initial phase.

The argument for a radical change in the Centre-State relations and for provincial autonomy is not new to political debate in India.

Many political and intellectual groups have been demanding autonomy for the States in all areas except defence, communications and foreign relations. The government itself had constituted several bodies to study the question. Way back in 1965, the Administrative Reforms Commission had formed a study team under the chairmanship of Mr. M.C. Setalvad, a renowned jurist, to examine and recommend changes in the Centre State relations.

Another committee to refer to the feeling of frustration afflicting State government because of the overriding administrative and financial powers wielded by the Central government, was the Rajmanner Committee which submitted its report in 1971. When the leftist parties formed a coalition government in Kerala in 1967, they faced similar difficulties as had piqued the Akali Dal-led governments in Punjab. The United Left Front had then submitted a proposal for a review of the Centre-State relations, specially in the area of finance, to the National Development Council. The Communist government of West Bengal had submitted another memorandum in 1977 which argued that "nothing beyond foreign relations, defence, communications and currency should remain exclusively in the hands of the Central government." However, these documents were not officially traduced as being anti-national and secessionist as was the Anandpur Sahib Resolution of the Akali Dal. Why was it so?

Was it because the exigency for a radical transformation of the Centre-State relationship as asserted in the Sikh document was felt to be allied to their aspiration to be the politically paramount community in the State? Was the paranoid reaction of the Central government indicative of its fear that unless fiercely discouraged the Resolution might set off also other States and regional groups to demand an end of the hegemony of the Centre and its helmsmen?

Considering the importance attached to the Anandpur Sahib Resolution in the political imbroglio existing in Punjab, we must not only understand the points made in the Resolution but also their relevance within the context of Indian constitutional developments. The following is an attempt to do so.

Drafting of the Indian Constitution: Forgotten Professions

Leaders of the Akali Dal point out that at the Lahore Session of the Congress held in 1929 it had committed itself not to foist a Constitution on Sikhs unacceptable to them. Nehru reiterated the commitment in 1946 after the Congress resolved to join the Constituent Assembly under the Cabinet Mission Plan. The Constituent Assembly held its first sitting on 9 December 1946. On 13 December 1946 Jawaharlal Nehru moved the Objective Resolution for adoption by the Assembly spelling out the fundamental principles of the Constitution of India. The Resolution defined the Independent Sovereign Republic of India "as a union of all the territories that now comprise British India, the territories that now form the Indian States, and such other territories as are willing to be constituted into the Independent Sovereign India." Apportioning the sovereignty of Independent India "between the Centre and its territorial units, the Resolution proclaimed that: ".... the said territories...shall possess and retain the status of autonomous units, together with residuary powers, and exercise all powers and functions of government and administration, save and except such powers and functions as are vested in or assigned to the Union, or as are inherent or implied in the Union or resulting therefrom.." This Objective Resolution was adopted by the Assembly "not in the formal way by raising of hands, but much more solemnly, by standing up and thus taking this pledge anew," as Nehru had suggested to the members.

On 24 January 1947 the Assembly appointed an Advisory Committee of fifty members to evolve the statutory provisions for the protection of fundamental rights of citizens and special safeguards for the minorities. Six Sikh members of the Assembly Joginder Singh, Baldev Singh, Pratap Singh, Harnam Singh, Ujjal Singh and Kartar Singh - were included in this Committee. Vallabhbhai Patel was elected to be the chairman. On 27 February 1947 the Advisory Committee split into two subcommittees, one to formulate the fundamental rights and the other the safeguards for the minorities. Explaining the objectives of the Minorities Subcommittee, Chairman Patel told the members including three Sikhs - Joginder Singh, Ujjal Singh, Harnam Singh - that they must prove the claim of the British government that it had a special responsibility for the protection of the interests of the minorities to

be bogus, by establishing that nobody could be more responsible and alive to the question than they themselves: "We must disillusion those who are looking with a critical eye from outside," Patel said. But the Committee was dominated by Hindu hawks like Govind Ballabh Pant and K.M. Munshi who had their own perception of the problem. Pant believed that the minorities had been used so far by the imperialists for creating strife, distrust and cleavages between the different sections of the Indian nation. K.M. Munshi, a member of the Fundamental Rights Sub-Committee, opposed the Sikh profession of inseparability of religion and politics. The Article VI of his Draft on Fundamental Rights while guaranteeing "freedom of conscience and the right to profess and practise religion in a manner compatible with public order, morality and health", emphasised that "the economic, financial and political activities associated with religious worship shall not be deemed to be included in the right to profess or practise religion." Harnam Singh, a member of Sub-Committee, also circulated a Draft of his own recommendations on 18 March 1947. Apart from reiterating the religious, cultural and institutional rights of the minorities, the Draft insisted that the Constitution should include the following specific safeguards:

1. No law shall be enacted and no executive order given to restrict the manufacture, the sale, the keeping and wearing of *kirpans* by the Sikhs.
2. Religious minorities in the country shall have the right to establish autonomous institutions for the preservation and development of their culture and to maintain special organizations with powers to levy taxes for maintenance and welfare of such institutions.
3. In framing rules for the regulation of recruitment to the Indian army the authorities concerned shall have due regard to the past association of the Sikh community with the Indian Army and particularly to the specific class, character and numerical percentage of posts hitherto held by them.
4. The Constitution shall provide that in the passing of any Bill, motion or resolution affecting exclusively a single

community, members of other communities shall not have a right of vote.

5. The Constitution shall provide for the establishment at the Centre and in each of the provinces of the Minority Commissions, composed of a representative of each of the minorities, to keep watch over their interests, to renew periodically the policy and programmes for their upliftment etc.

The Sub-Committee accepted to incorporate in its report Harnam Singh's suggestion that "wearing and carrying of Kirpans shall be deemed to be included in the practice of the Sikh religion." Other suggestions were given short shrift.

Before this Minorities Sub-Committee which met for three days from 17 April 1947, Ujjal Singh made essentially two points (i) The Principle of equality of opportunity in government services should not restrict the government from making rules to give special considerations to minorities; and (ii) their places of worship should not be acquired by the State. Responding to a official questionnaire circulated to the members of the Sub-Committee, Ujjal Singh and Harnam Singh prepared a joint memorandum in April 1947. The Memorandum demanded reservation of six per cent of seats for the Sikhs in the Central Services and twenty five per cent in the Provincial Services in Punjab and the status of official language to Punjabi in the State.

The Advisory Committee met from 28 to 31 July to deliberate on the reports of the sub-committees. The partition of India had by then become certain. The Advisory Committee decided that "in view of the uncertainty of the position of the Sikhs at present pending the award of the Boundary Commission in the Punjab, the whole question of the safeguards for the Sikh community should be held over for the present." Presenting the report of the Advisory Committee before the Constituent Assembly on 27 August 1947, when India had already been partitioned, the Chairman Patel, in his speech, did not make one single reference to the plight of the Sikhs who in hundreds of thousands were being massacred, raped, robbed and uprooted in those parts of Punjab which had been awarded to become Pakistan.

Following the declaration of 20 February 1947 which set the deadline for the transfer of power in India, the Constituent Assembly had appointed two more Committees - the Union Constitution Committee and the Provincial Constitution Committee to spell out the principles of the Union and Provincial powers. Jawaharlal Nehru became the Chairman of the Union Committee and Patel of the Provincial Committee. Both had been for some time advocating more powers to the Centre than allowed to it under the Cabinet Mission Plan which they were trying to sabotage from within the Constituent Assembly by manipulating the Committees as well as from without by inspiring the League to keep out of it. The Cabinet Mission Plan had placed only Defence, Foreign Affairs and Communications with the Centre. Following the appointment of the Committees to advise the Constituent Assembly on the Union and the Provincial powers, B.N. Rao, the Constitutional advisor, circulated a questionnaire to their members to which they were required to respond in writing. K.M. Pannikar, a confidant of Nehru, took the opportunity to plead for the amplification of the Cabinet Mission Plan. In his note to the Constitutional Advisor dated 3 June 1947 Pannikar took up the Subject of Defence to argue that the Centre required to command immanently more powers than a rigid interpretation of the Mission Plan would permit. He expounded that since war had passed into the industrial phase of economic history combining the techniques of peace as well the techniques of actual warfare, its organization depended on an integrated approach to research and planning uncircumscribed by legalism and claims of autonomous power of the Provincial units. Other members of the Committees plainly suggested that the terms of the Mission Plan might be manipulated to permit the transfer of more powers to the Centre. A joint meeting of the Union and the Provincial Committees held on 8 June 1947 took the following decisions:

1. The Cabinet Mission Plan would not be scrapped but modified. The Assembly is free to give such additional powers to the Centre as it may consider desirable. But the Indian States should be integrated into the Union and be made to participate in the working of the Constituent Assembly on the basis of the Mission Plan.

2. The Objectives Resolution passed by the Constituent Assembly should be amended in view of the altered circumstances.
3. The Assembly should develop three exhaustive legislative lists of federal, provincial and concurrent subjects with the residuary powers vested in the Centre.

Economic Realism of a Gandhian

On 15 August 1947 India gained independence but lost its territorial integrity. We have already examined how the States were intimidated and forced to accede to the Union contrary to the terms of the Cabinet Mission Plan. Special privileges for the minorities which were guaranteed in the initial stages so fervently by Patel were abolished. There were to be no more separate electorates or reservations of seats in legislatures for minorities. The Advisory Committee placed this important recommendation before the Assembly for adoption in May 1949. The concept of Centre-State relationship too underwent radical transformation. The President of the Constituent Assembly, Rajendra Prasad, appointed an expert Committee to recommend the financial provisions of the relationship in a meeting he had with the officials of the Finance Ministry on 4 September 1947. During this meeting the Finance Minister pronounced that the suspicion which the provinces had developed towards the Centre was the result of the political machinations of the British. He expressed himself against the rigid demarcation of the fields of the Central and provincial taxation which, he said, would promote the tendency in the provinces to overlook their own sources of revenue and instead to ask the Centre to subsidize their finances. President Rajendra Prasad reminded the officials of the Ministry that the provincial finances would flounder if they kept the commitments to abolish *zamindari* - revenue farming - and to encourage prohibition. He requested the expert Committee consisting of Nalini Rajan Sarkar, an industrialist from Calcutta and a former member of the Viceroy's Executive Council, and of V.S. Sundaram and M.V. Rangachari, both senior officials in the Finance Ministry, to make their recommendations in the light of the realistic principles indicated by him. The terms of reference for the Committee were: to examine the distribution of revenue between

the Centre and the Provinces and their borrowing powers under the Government of India Act of 1935, and to recommend amendments if necessary. The Committee was also asked to determine:

1. The Federal taxes whose net proceeds were to be retained entirely by the Centre; those which were to be made over to the Units and those to be divided between them.
2. The principles of sharing.
3. The machinery to effect the sharing.
4. The system to incorporate the Princely States within the parameters of the financial policy applicable to the Provinces.

Improving on the British

Giving a brief history of the development of the financial arrangements in the country under the British, the Committee, in its report submitted in December 1947, pointed out that they had developed, parallel to the political arrangements, from a unitary to a quasi-federal system.

Before 1871 all financial powers were in the hands of the Government of India with the Provincial governments depending on it for grants. In 1871, Lord Mayo, the Viceroy of India, initiated the process of financial and political decentralization known as "Provincial Settlements" under which the provincial governments were allowed to impose certain taxes and to collect some of the departmental revenue, apart from receiving fixed grants from the central government to autonomously administer police, education, roads, medical services and jails. Next in the series of reforms, Mayo transferred several other heads of revenue such as land, excise, stamps to the provinces. They were now required to manage general administration, law and justice as well. Lord Ripon, who came to India as the Viceroy in 1880, introduced further improvements in the financial arrangements by allocating all the sources of revenue under three heads- Imperial, Provincial and

Divided. Punjab under this scheme began to receive more than 40 per cent of the land revenue. A revision of the Settlement in 1904 under Viceroy Curzon known as Quasi Permanent Settlement led to increase in the provincial share of the revenues from such sources as excise, registration and forests. The same terms of settlement were declared permanent, after a review of their working under Lord Hardinge in 1912, and remained in force until the Reform under the Government of India Act 1919 took effect. Throughout this period the budget of some of the provinces including of Punjab remained in surplus.

The Government of India Act 1919 granted a measure of autonomy to the provinces. Land, excise and stamps, registration, forests, irrigation as the sources of revenue were completely made over to them. The Centre retained customs, railways, salt, opium, posts and telegraphs. Provinces were also given the power to borrow money from the open market and also the right to have a share of the income tax collected by the Central government. Financial autonomy granted to the Provinces under the Government of India Act 1919 resulted into a deficit in the Central budget. As a result the Provincial governments were asked to transfer 87 per cent of the difference between the gross provincial revenue and gross provincial expenditure as contribution to the Central pool. The purse from Punjab amounted to Rs. 22 million. Madras contributed Rs. 35 million. Assam only Rs. 1.5 million. Poor States like Bihar and Orissa were exempted from the requirement. However, the policy came under severe criticism and led to appointment of a Committee under Lord Maston in 1920 which pronounced against the drain of the provincial financial surplus which was compelling them to impose new taxes to raise the money for contribution to the Centre. The system of provincial contribution was altogether abolished in 1929.

The Government of India Act 1935 revised the principle of dividing the heads of revenue and also of the Central grants to the provinces through subvention of some of the taxes under Central jurisdiction. During the war years most of the provinces registered surplus budgets. It was due to increase in the revenue collection because of the war conditions and discontinuation of the most of the developmental works.

The Expert Committee on Finances, after giving a cursory picture of the history of financial relationship between the Centre and States in British times went on to examine the future prospects of the Central and the provincial finances. It warned that a rise of expenditure on development without a corresponding enhancement of revenue collection would upset the provincial finances. It took note of the fact that abolishment of landlordism - *zamindari* - would cause the land revenue to diminish, and also the revenue from stamps and registration fees due to the attendant decrease in litigation. The Committee then went on to give the advice to the provincial governments not to show excessive zeal about implementing programmes like prohibition which would result in substantial loss of revenue from excise.

The finances of the Centre, the Committee felt, were on the whole sound. However, it needed to acquire more sources of revenue since it was going to be responsible for many high-profile functions like defence, foreign relations etc. The Committee recommended the stock exchange to be incorporated as a federal item of taxation, also the trade operations of the provincial government to become liable to Central taxation. The Centre, so the Committee recommended, should keep the entire proceeds of duties of customs including export duties, taxes on capital value of assets and taxes on the capital of companies, taxes on railway fares and freights, export duties on jute, and fifty per cent of the excise duty on tobacco. The Committee asked the Centre to keep a watch on the borrowings by the provincial governments from the open market, to put a ban on their power to take foreign loans without its sanction, and to arm itself with the Constitutional power to suspend the normal financial arrangements in situations of emergency. The Committee also recommended appointment of a Statutory Commission to monitor the finances of the provinces and to advise the Central government to keep them under yoke.

These recommendations which the Constituent Assembly accepted, drastically reduced the financial powers enjoyed by the provinces so far. However, the process of pauperisation of Provinces did not quite end here. By the time the Constitution had been finalized by the Drafting Committee, it was clear from the Union and the Provincial lists of subjects in the seventh Schedule that the

Union had, in contradiction with the original scheme of the Constitution, become the power over the Provinces. The Union List of subjects included among others:

- * Industries declared by Parliament by law to be necessary for the purpose of defence or for the prosecution of war.
- * Atomic energy and mineral resources essential to its production.
- * War and Peace.
- * Pilgrimages to places beyond India.
- * Telephones, wireless, broadcasting and other like forms of communication.
- * Ancient and historical monuments declared by Parliament by law to be of national importance; archaeological sites and remains.
- * Establishment of standards of weight and measures.
- * Opium, its cultivation and manufacture, sale for export.
- * Petroleum and other liquids and substances declared by Parliament by law to be dangerously inflammable; their possession, storage and transport.
- * Provision for dealing with grave emergencies in any part of the territory of India affecting the Union.
- * Lotteries organized by the Government of India or the Government of any State.
- * duties of excise on tobacco.

The Provincial List mentioned the following subjects among others:

- + Public health and sanitation, registration of births and deaths.

- + Alcoholic liquors for human consumption.
- + Inn and inn-keepers, betting and gambling.
- + Prisons, reformatories, Borstal institutions and other institutions of a like nature and persons detained therein.
- + Money lending and money lenders.
- + Relief of the poor, unemployment.
- + Burials and burial grounds; cremations and cremation grounds.

To return to the question of Punjab, the Advisory Committee on Fundamental rights and Safeguards for the Minorities had decided to withhold the question of safeguards for the Sikh community. In May 1949 the Sikh members of the Punjab Legislative Assembly and of the Constituent Assembly resolved in a joint meeting to ask for reservations in Public Services and legislatures at least for backward Sikhs. Earlier, following an understanding with the Congress leaders that they would ensure adequate constitutional safeguards for the Sikhs in India, the Akali Dal had agreed to dissolve its political character on 17 March 1948. The Resolution adopted by the Party on this occasion said: "Whereas the Congress is committed by its resolution of 1929 to give the Sikhs full satisfaction in the matter of communal safeguards affecting them... whereas the right course for Sikhs is to trust the sense of fairness and generosity of these personalities, the meeting of the Working Committee of the Shiromani Akali Dal after due deliberations resolves that all members of the Panthick Akali Dal both at the Centre and in the East Punjab are advised to join the Congress Assemblies' parties forthwith." Master Tara Singh himself was not in favour of the merger. Yet he towed the line favoured by the majority of the leaders in the Akali Dal who believed that the step would help to ensure that the Constitution of India is drafted to the advantage of the Sikh community.

These hopes were not fulfilled.

Patel on the Sikhs

Vallabhbhai Patel, the Chairman of the Advisory Committee on Fundamental Rights and Minorities submitted his final report to the President of the Constituent Assembly in May 1949. He referred to the Sikh case which the Committee had decided to let at abeyance in February 1947, in the course of his speech introducing the report in the Constituent Assembly on 25 May 1949. His references were by no means gratifying. I quote:

"The Sikhs themselves have thought that certain classes of people amongst them, who have been recent converts and who were originally Scheduled Caste Hindus, are suffering from the disabilities which the Scheduled Caste Hindus are suffering from for the fault of the Hindu community. The Sikhs are suffering for the fault of the Sikh community and nobody else. Really, as a matter of fact, these converts are not scheduled castes or ought not to be scheduled castes; because, in the Sikh religion there is no such thing as untouchability or any classification or difference of classes. But as unfortunately in this country the Hindu religion is suffering from the evil effects of certain customs and prejudices that have crept into the society, so also, the reformed community of the Hindus, called the Sikhs, have also in course of time suffered from degeneration to a certain extent. They are suffering from a complex which is called fear complex. They feel that if these scheduled castes who have been converted to Sikhism are not given the same benefits as the Scheduled Castes have been, there is probability of their reverting to the Hindu Scheduled Castes and merging along with them. So the House will realize, and I don't propose to conceal anything from the House, that religion is only a cloak, a cover, for political purposes."

The New Priority

The Congress leaders had earlier made spacious promises to the Sikhs because without their co-agency Punjab, the granary and shield arm of India, would have federated with Pakistan with its borders meeting the outskirts of Delhi. Now that Punjab had been partitioned with the Sikhs throwing in their lot with India, Patel and Nehru could happily turn back on the promises they had made

to them. However, they were unfaithful to their earlier assertions not only in regard to the Sikhs. They in fact displayed an amazing consistency in forsaking all important commitments and ideals professed by them in the course of their struggle for freedom under the leadership of Mahatma Gandhi. We have already seen how paramount an objective Defence had not become for the leaders of India, who earlier professing their unswerving and absolute commitment to non-violence under Gandhiji, had used the issue of non-violent opposition to the Second World War to launch the Quit India movement. We have seen how Rajendra Prasad, the president of the Constituent Assembly, who had come into politics by joining the movement launched by Gandhi to redeem the bonded conditions of indigo plantation workers of Bihar, expressed himself against the abolishment of *zamindari* - revenue farming - as well as against implementation of the policy of prohibition, two issues which were so central to his Bapu's vision of Swaraj. Gandhi, known to the world as the harbinger of appropriate technology, became the father of a nation which had the first nine items of the Union List in its constitution dealing with Naval, Military and Air Force, Arms and Explosives, Atomic Energy, Defence Industries and Preventive Detention. The man who had used to equate Swaraj to decentralization of political and economic power acquiesced to the partition of India so that its mutilated bulk might survive as a single unit through the coercive force of a strong Centre.

How the Constitution Works

Dr. B.R. Ambedkar moved the final Draft of the Constitution of India for adoption by the Constituent assembly on 4 November 1948. Addressing the Assembly on this occasion he highlighted its merits and answered the charges which had been brought against it. I quote:

"In normal times it is framed to work as a federal system. Once the President issues a Proclamation which he is authorized to do under the provisions of Article 275, the whole scene can become transformed and the State becomes a unitary state. The Union under the Proclamation can claim if it wants (i) the power to legislate upon any subject even though it may be in the State list, (ii) the power to give directions to the States as to how they should

exercise their executive authority for any purpose in any officer, and (iii) the power to suspend the financial provisions of the Constitution."

Explaining how the constitution would work in normal times, Ambedkar said: "The Draft Constitution has sought to forge means and methods whereby India will have a federation and at the same time will have uniformity in all basic matters which are essential to maintain the unity of the country. The means adopted by the Draft Constitution are three:

1. A single judiciary;
2. Uniformity in fundamental laws, civil and criminal; and
3. A common all India civil service to man important posts."

Elucidating the importance of the last point, he said: "It is recognized that in every country there are certain posts in its administrative set up which might be called strategic... It may not be easy to spot such posts in a large and complicated machinery of administration... Fortunately for us we have inherited from the past a system of administration which is common to the whole of country and we know what are these strategic posts."

Ambedkar on the Village

Before closing his speech Ambedkar decided to answer what he thought was the main criticism against the Draft Constitution. "It is said that the new Constitution should have been drafted on the ancient Hindu model of a State and that instead of incorporating western theories the new Constitution should have been raised and built upon village *panchayats* and district *panchayats*... The love of the intellectual Indians for the village community is of course infinite, if not pathetic. It is largely due to the fulsome praise bestowed upon it by Metcalfe who described them as little republics having nearly everything that they want within themselves, and almost independent of any foreign relations... But those who take pride in the village communities do not care to consider what little part they have played in the affairs and the destiny of the country;

and why? Their part in the destiny of the country has been well described by Metcalfe himself who says: 'Dynasty after dynasty tumbles down. Revolution succeeds to revolution. Hindoo, Pathan, Mogul, Maratha, Sikh, English are all masters in turn but the village communities remain the same. In times of trouble they arm and fortify themselves. A hostile army passes through the country. The village communities collect their little cattle within their walls, and let the enemy pass unprovoked.' Such is the part the village communities have played in the history of their country. Knowing this, what pride can one feel in them? That they have survived through all vicissitudes may be a fact. But mere survival has no value. The question is on what plane they have survived. Surely on a low, on a selfish level. I am therefore surprised that those who condemn provincialism and communalism should come forward as champions of the village. What is the village but a sink of localism, a den of ignorance, narrow-mindedness and communalism? I am glad that the Draft Constitution has discarded the village..."

Anandpur Sahib Resolution: Attempt to Retrieve Lost Ground

The Constitution as settled by the Drafting Committee was adopted by the Constituent Assembly on 26 November 1949. The only members who refused to append their signature to the draft were Hukum Singh and Bhupinder Singh, the representatives of the original Akali Dal. They proclaimed: "The Sikhs do not accept this Constitution. The Sikhs reject this Constitution Act."

It is assumed by a large majority of the people in India today that Sikhs have, without a political background and abruptly under some instigation, adopted the resolution of Anandpur Sahib in 1973. As we have seen in the last chapters dealing with the travails of the Sikh society, the assumption is based on ignorance. Kapoor Singh, a leader of the Akali Dal who joined Sikh politics after resigning from the Indian Civil Service under the British and remained a member of Parliament for many terms, tried to argue for the right of Punjab to frame its own internal autonomous Constitution as was recognized for the State of Jammu and Kashmir under Article 370. He also tried to persuade, unsuccessfully, the leaders of the Akali Dal to demand autonomy for the State in all

areas except defence, foreign affairs, communications, currency and economic planning. He maintained that the unity of the Sikhs with India could not be long-lived unless it was founded on the terms on which, rejecting the cajolery of the Muslim League to confederate with Pakistan, they had joined the Republic of India. However, the majority in the Akali Dal was not prepared to set out political objectives requiring radical changes in the Constitutional structure until the experiences during the years in which it tried unsuccessfully to give a government to the State soured their tempers. They were now compelled to take a bold stand, if not for the future of the State and the Sikh community, so at least for their own political survival. The Anandpur Sahib Resolution was the offshoot of this change. The political goal, the Resolution proclaimed, is enshrined in the commandments of the tenth Guru, the ultimate objective of which is the pre-eminence of the Khalsa. The following references to the Resolution are based on the English version authenticated by Harchand Singh Longowal, President of the Akali Dal, in August 1977:

The Akali Dal would seek the realization of the birth right of the Khalsa through creation of a congenial environment and a political set up for the attainment of which the Party would strive by all possible means. It was (a) to regain all those Punjabi speaking areas for the State which had been ceded to Haryana and Himachal Pradesh at the time of the reorganization of the State in 1966 and to constitute them into a single administrative unit in which the interests of the Sikhs and Sikhism are specifically protected. And (b), in this new Punjab (even as in other States) the Centre's interference would be restricted to Defence, Foreign Relations, Currency and Communications; all other departments would be under the jurisdiction of Punjab (and the other States) which would be fully entitled to frame its (their) own laws. For the departments with the Centre, Punjab and the other States would contribute in the ratio of the strength of their representation in Parliament.

The Akali Dal would also endeavour to have the Indian Constitution recast on real federal principles, with equal representation at the Centre for all the States.

A Dialogue

I have discussed the Anandpur Sahib Resolution with several Akali Dal leaders as well as with other knowledgeable Sikhs. They include Simaranjit Singh Mann, Kuldeep Singh Wadala, Narender Singh, Gurcharan Singh Tohra, Sukhjinder Singh, Amrinder Singh, Gurtej Singh, Inderjit Singh Jeji, Baljit Kaur, Colonel Pratap, Prof. Gurdarshan Singh, Justice Bains, to mention those who come to my memory off hand. I found them share the same understanding on all vital issues pertaining to the demand of provincial autonomy. I will try to portray the essential views expressed by them in the form of a fictional dialogue, including details of their major points of argument from my own reading:

Question: How important is the issue of State autonomy as articulated by the Anandpur Sahib Resolution of the Akali Dal in the present political crisis?

Answer: This is the only way to follow if we want the Democratic Republic of India to survive. India must regain its lost association with the process of devolution of Central power as it was initiated by the British reforms in the wake of the Montagu-Chelmsford report of 1917, a process which was disrupted by the makers of the Constitution of free India.

Question: But you are reverting to a position which lies seventy years back. After forty two years of living with a system which is in essence unitary, it may be very difficult to resurrect the federal vision of the pre-independence days without a violent prelude.

Answer: Such violence may not be avoidable when political leaders of a society become blind to the demands of the people. History not always moves in a straight line. There may be set backs, but if an idea persists that should mean that it is historically valid and it will raise its head again and again as much as you may try to suppress it.

The Lesson of Pakistan

Question: But take Pakistan. It came as the logical culmination of a position of the Muslim League fundamentally not different

from the present main demand of the Sikhs. But see what has happened to original Pakistan. Its eastern half has since become sovereign Bangladesh. And the peoples of both halves are today perhaps less happy than when they were still together. I wonder what ideals have been realized in this process. Should we not try to avoid the repetition of such processes to afflict the people of the subcontinent still further?

Answer: The original creation of Pakistan and its later splitting were both historical mishaps. You know the Muslims originally did not want to have a separate State. They wanted safeguards. They wanted a place in the polity of India. They wanted a share of the political power which the Indians were going to wrest from the British. The demand was a legitimate aspect of the democratic ideal which the Indian freedom movement had held out to them. The problem was that they were a minority. They were no more communal than the Hindus, but the Hindu leaders wanted to bulldoze their way on the strength of their superior number. This absolutism of the leaders of the dominant community was and still is the main weakness of our democracy. Even empires have been held together by minorities who could rule in a spirit of tolerance over peoples of diverse identities.

You know Jinnah used to initially ridicule the idea of Pakistan. He was not even a practising Muslim. He was for cooperation with the Congress. Before the elections to the Provincial Assemblies in 1937 the Congress and the League had entered into an unwritten pact to form coalition governments. When the Congress bagged enough seats in some of the Provinces to be able to form its own governments it backed out of the pact. Nehru became strident and started calling the League a communal organization. He made public speeches saying that the Congress had for too long been thinking in terms of pacts between communal leaders, neglecting the people behind them. The Congress, he said, had to go ahead and welcome the Muslim masses and the intelligentsia into the great organization and rid the country of communalism in every shape and form. His speeches were understood by most Muslims as communal harangues, though in fact they originated from his egocentrism and ambition to be the only leader. Jinnah was still for a compromise. In a public statement in early 1937 he had declared

that he wanted an honourable settlement between the Hindus and Muslims. He followed this public appeal with a personal request to Gandhi to mediate and iron out the differences between the Congress and the League. Gandhi answered: "I wish I could do something, but I am utterly helpless. My faith in unity is bright as ever; only I see no daylight but impenetrable darkness and in such distress I cry out to God for Light." Well, if you decide to cry out to God for light, instead of mediating when you are politically on a good wicket, how can you expect your opponent not cry out "Islam is in danger" to get even with you? Pakistan was a creation of the political small-mindedness of the Hindu leaders.

Partition could have been averted even under the Cabinet Mission Plan. But the Congress was not prepared to share power. The result was separation. But who has lost? Certainly not the Congress which has since been ruling India under one dynasty. The losers were the people of this subcontinent, who overnight became enemies and have since been exhausting their energies and resources for mutual aggression instead of attending to constructive social tasks. Partition was a historical set back, no doubt, not only because of the bloodshed and the uprooting which attended it, but primarily because it succeeded in thwarting the evolution of our democratic polity. The only way to overcome or even to undo the mishap is to go back to the point at which we went off-track. Only through devolution of power and by acquiring the tolerance to accommodate divergence can we put the train back on the rails. This is what we are demanding in our much defamed Anandpur Sahib Resolution.

An Assertive Minority

Question: Are you also not asking for the preeminence of the

Khalsa? Does that not mean subordination of others to the Khalsa within the political set-up which the Resolution seeks to create?

Answer: No. It does not mean subordination of others. It means political restitution which will afford every section of the society the opportunity and the say it deserves on the strength of its contribution to the social weal.

Question: Why then don't you use the right terminology? The word 'paramountcy' which is in the Resolution means a status of superior power. It clearly has a meaning different from the interpretation you are giving.

Answer: I admit that terminology is not our forte. We are essentially peasants and soldiers. Our artisans too contribute much to the marginal industry we have. Our religion to which we are very much attached is founded on simple yet strong principles of faith, sharing and dignity. We try to follow them. We want to create a society in which these ideas become actual and attainable for everyone. However, we feel that those who are in high places and decide things are averse to these ideas. We don't have much of a say, either in politics or in the bureaucracy. Economic planning is thrust on us from the top. All decision-making and power are centralized. A handful of people at the Centre who control instruments of the State, equating themselves with the Nation, inflict on us the policies and decisions which are actuated by their narrow selfish ends. When we raise our voice we are called parochial. When we mobilise people for mass movements we are accused of mobilizing them from the religious pulpits. For Sikhs the distinction between religion and society does not exist. Ours is a social religion. Our religious institutions exist to provide not only solace against worldly want, misery and injustice but also to fight against them. The teaching of our gurus is not the opium of the masses, a heading under which perhaps some other religions may come, it supplies the dose to wake up people from their social apathy. By provoking communal reactions against us in other sections of the people, the central government and its protagonists build up a popular mandate for their policy of repression. We don't give in to this repression and fight back. So they call us terrorists, and the gap between us and them grows. There can be no appeasement unless Hindu leaders learn to accommodate the minorities, respect their aspirations and become less strident in their approach towards them.

Question: Why do you make it into a majority versus minorities issue? The ruling class is repressive towards all social groups who fight for their rights irrespective of their size and communal identity.

Answer: May be, but there is a difference. When a group of Hindus is dealt with in a repressive manner, it is made clear to them

that their demands are unreasonable, that the repression is not directed against their communal identity. But with us, as soon as we raise our voice, our identity itself comes under attack, including our beliefs, our way of life, our language etc.

Question: But don't you think that this is a rather recent development?

Hindus and Hindi

Answer: No, the history of communal discrimination and Hindu highhandedness is as old as the idea of Indian independence. Take the proceedings of the Minorities Sub-Committee appointed by the Constituent Assembly. The committee started its work with pious declaration by its Chairman and others that the rights and the safeguards for the minorities are fundamental to the secular Republic of India etc. Then came the partition and the makers of the Constitution decided to give up all the proclamations they had made earlier to cajole us into the Federation. K.M. Pannikar, who spearheaded the sabotage of the Federal Scheme, began to say: "To place the emphasis on the rights of the units, as a federal system must inevitably do, and to entrust the effectuation of those rights to courts is to put a premium on backwardness and to invite disaster." Well, this was his view and though it was diametrically opposed to the declared policy of the Congress before independence, I won't deny those who want to lick back their spittle their right to do so. But how could they get rancorous at those who stuck to the ideals of the freedom struggle and call them narrow-minded, parochial and communal? After all the peoples of diverse identities in the sub-continent had come together to form a single Secular State on the basis of some common profession of principles. Take the language issue. The Congress itself had been advocating the formation of linguistic States. After independence the Sikhs in Punjab and several other linguistic groups in southern and western India expected them to implement this policy. But in Punjab the leaders of the Congress incited the Hindus to disown their language and to register Hindi as their mother-tongue. Lala Jagat Narayan who was the General Secretary of the Congress party in the Province and also a Minister led the campaign. But why single out Jagat Naryan? The majority of the leaders of the Congress was like that. You know that

when the Constituent Assembly met to appoint the Committee on the Rules of Procedure, one member, R.V. Dhulekar, moved a Resolution proposing that the committee should frame rules in Hindi and not in English. This was impossible since peoples from other provinces did not know Hindi. When the Chairman requested him to be sensible, Dhulekar went on to remark that those who did not know Hindi had no right to stay in India. Seth Govind Das, a leader of the Congress, speaking to the South Indian members of the Assembly had said in the same assembly meeting that, "If after 25 years of effort on the part of Mahatma Gandhi they have not been able to understand Hindustani the blame lies at their door." T.T. Krishnamachari, himself a Congressman from the south, had to tell him that Hindi imperialism, which was developing into a new type of totalitarianism, might result in a secessionist movement. His speech in the Assembly conveyed how the minorities felt under a bigoted majority even without suffering physical persecution. He said: "I would convey a warning on behalf of the people of the South for the reason that there are already elements in South India who want separation and it is up to us to tax the maximum strength we have to keep those elements down, and my honourable friends in the UP, do not help us in any way by flogging their idea of 'Hindi imperialism' to the maximum extent possible. It is up to my friends in the UP to have a whole India, it is up to them to have a 'Hindi India'. The choice is theirs and they can incorporate it in this Constitution; and if we are left out, well, we will only curse our luck and hope for better times to come."

Discriminations

Mind you, Krishnamachari was a Congressman. Then they started making disparaging remarks against Sikhs as a religious community. Patel himself went on record to dispute the religious identity of the Sikhs. He accused us of harbouring a fear complex and all that. The Constitution the way it emerged not only lacked in the safeguards promised to us by Gandhi and Nehru, but also contained selectively discriminatory provisions against Sikhs. For example, the word Sikh occurs in two different meanings in the Constitution. Referred to as a religious community they are, under Article 25, shown to be members of the Hindu religious family along with Jains and Buddhists. However, the provisions of the

Constitution which confer special economic rights and reservations to the depressed castes of Hindus exclude from their purview the community of Sikhs. On the other hand, the Hindu Code Bill describes Sikhs as a sect within Hinduism. Hindu chauvinism compels its adherents to deny us our identity and the essential injustice of their character compels them to deny us the privileges they reserve for themselves. It is this Hindu schizophrenic character of the Indian State that we are fighting against.

Question: You must recognize that the Constitution of India confers on its citizens, irrespective of their religion, race, caste and sex, certain fundamental rights like equality before the law, equality of opportunity, freedom of speech, association and profession etc. apart from the right to life and liberty which are justiciable. Don't you think the minorities must utilize these guarantees to realize their aspirations rather than harping on special privileges and protections?

Answer: These guarantees do not mean very much to us just as the rights attested under the English laws meant little to Indians before independence. You must be aware that even the Charter Act of 1833 under Section 87 guaranteed that "no native of British India shall by reason only of his religion, place of birth, descent, colour or any of them be disabled from holding any place, office or employment under the Company." The substance of this provision was retained under section 96 of the Government of India Act, 1919. The Government of India Act of 1935, while retaining these guarantees of non-discrimination, extended fundamental rights of the native Indians under sections 275 and 298. But you see Indians were not satisfied. In British India preventive detention was not so common as in India today. Even during the Quit India movement of 1942, no person was detained preventively for more than six months without a judicial review. The infamous Rowlett Act was never used. However, whatever rights are available under the Indian Constitution can be suspended through a Presidential proclamation; even the right to move the courts for the enforcement of life and liberty. So what is the point? Actually fundamental rights guaranteed by the Constitution can mean very little to suppressed classes and minorities unless they are backed by structural facilities and political freedom to realize their aspirations. However, even in

those regions in which the minorities constitute the dominant section of the population in terms of numbers, these facilities and freedom are denied to them. In Punjab we are in a position to give a government to the State which may fulfil the aspirations of its people. But the Centre does not let us. It has all the powers in its hands. We cannot initiate anything at the provincial level. Then the Centre gets busy toppling our governments from the day one, either by engineering defections from our ranks or when the method does not work, through the exercise of the discretionary powers of the Governor, who as the representative of the Centre has them in ample measure.

The Office of the Governor

Question: But you cannot blame that the Centre discriminates Punjab alone in this respect. Governors have been doing the same thing in every other state which elects the regional opposition to the government.

Answer: I have no quarrel with you on that. As you know the Anandpur Sahib Resolution demands radical change in the Centre-State relations for the whole of India. We want to create a federation of autonomous States in whose functioning the Centre cannot intervene. This in fact was the goal of the Indian freedom struggle which the Congress Party gave up after seizing the reins of power. In the original scheme of the Constituent Assembly the office of a Governor was not vested with indiscriminate powers to interfere in the working of a responsible provincial government. In fact he was not even to be a nominee of the Central government. The memorandum on the Principles of the Provincial Constitution, prepared by the Constitutional Advisor to the Assembly in May 1947, had provided that the Governor would be elected by the Provincial Legislature. The Provincial Constitution committee had gone a step further in considering direct election of the Governor by the people of the Province or at least through some system of indirect election. A Sub-Committee appointed to consider the issue, consisting of B.G. Kher, K.N. Katju and P. Subbarayan, had recommended that the Governor should be elected by an electoral college formed in Assembly constituencies on the scale of one elector for every 10,000 voters. The recommendation had been

incorporated in the Committee's Report. But suddenly the leaders decided to transfer all powers from the provinces to the Centre to supervise and direct their functioning. One Brajeshwar Prasad was asked to move the amendment proposing that the Governor should be appointed by the President by 'warrant under his hand and seal'. This Brajeshwar Prasad used to candidly admit that the proposal was contrary to the accepted principles of provincial autonomy, federalism and democracy and that these niceties of the Western democracies were not applicable to the conditions in India. Brajeshwar Prasad's amendment was adopted. This is how the institution of Governor came to have the present form.

Question: This had happened right at the beginning, when the Constitution was being drafted. Nearly four decades have passed since then. Why do you think the provincial governments and regional parties maintained silence on this issue for so long?

Answer: You see, the Congress Party controlled both the Centre and the States for two decades. The Centre-State relations remained essentially an intra-party affair. In the mid sixties the regional parties formed governments in many States for the first time and the trouble started. Even before that there were examples to show that the Party in power at the Centre abused the office of the Governor to promote its own political interests. The first example of this kind came from Punjab, in June 1951. The Congress Party was then ruling with Dr. Bhargawa as the Chief Minister. He was, however, not in favour of the policy of the Centre to repress the movement for linguistic reorganisation of the State which the Akali Dal was leading. The Centre directed him to resign. He obeyed. But he commanded majority support in the State Legislature and it was not easy for the Congress to find a person to replace him. So the Governor was asked to suspend the State government by proclaiming President's rule and to keep the State Legislative Assembly in suspended animation to enable the Congress to groom a candidate to replace Dr. Bhargawa. Then, there is the often quoted example from Kerala. In July 1959 the Communist Party of India formed the government with E.M.S. Namboodiripad as the Chief Minister with absolute support in the State Assembly. But the Centre did not want to have a communist government and it used the Governor to impose President's rule under the pretext of

deterioration in public order, a deterioration which it had engineered. During the period from 1967 to 1969 seven State governments of the opposition parties were dismissed through the instrumentality of the Governor's office. Between 1970 and 74, nineteen State governments were subverted. During Emergency, the government in Tamil Nadu under the leadership of Chief Minister Karunanidhi of the DMK was dismissed on 31 January 1976 on the ground that there were allegations of corruption against the government and that it did not implement the Central directive to censure the press and detain all opposition political activists.

Question: Did not the conglomeration of opposition parties known as the Janata Party do the same thing by dismissing nine Congress ruled States when it came to power at the Centre in 1977?

Answer: Of course this was also wrong, not so much constitutionally as from the viewpoint of political morality. Since political immorality is a contagious disease it can be remedied only through drastic structural changes. (F.N. I)

Question: What about the scope of performance of the State governments in normal times? What impediments are there for them to implement their own policies and programmes during periods when they are allowed to function?

The Myth of Provincial Jurisdiction

Answer: As a matter of fact the State governments cannot function except as puppets of the Central government. They have no independent powers in any area of governance. The Union has usurped the residuary powers of legislation over the States under Articles 246 and 254 of the Constitution. Governors have the power to withhold assent to a Bill passed by the State Legislatures and to render the same to the President who can deny his assent without assigning any reasons under Articles 200 and 210. Let me give you some examples so that you may be able to see what these Constitutional powers mean to the State governments.

The Andhra Pradesh Legislature enacted a Bill abolishing certain privileges available to the landed class of the Telengana region in the middle of 1983. The Bill was called 'The A.P. (Telengana

Area) Abolition of Inams (Amendment) Bill, 1983'. The Governor declined to give his assent to the Bill and referred it to the President of India who cleared the Bill after withholding it for one and half years in December 1984. The Orissa Estates Abolition (Amendment) Bill was passed in the beginning of 1977. The Governor referred the same to the President in November 1977. The President returned the Bill without his assent on 25 April 1980, after one and half years. It can take the President longer to refuse assent. The Sikim Urban Land (Ceiling and Regulation) Bill 1976 was referred to the President in October 1976. The President disposed of it on 25 April 1980 by refusing assent after three years. The Land Acquisition (Maharashtra Amendment) Bill was referred to the President in November 1977 who returned it without his assent on 25 August 1981. The same was the fate of Bihar Urban Property (Ceiling) Bill, 1972, referred to the President in July 1972 and rejected by him in August 1976. The Public Property (Prevention of Destruction and Loss) Bill passed by the Karnataka Assembly in 1978 was disposed of by the President after six years in August 1984. He declined assent. The Trade Unions (West Bengal Amendment) Bill, 1969, was rejected by the President after twelve years in September 1982.

You can guess from the titles of these Bills that they meant to be progressive and reformative. You can see from this how the Governors and the President who are merely executive symbols functioning under the dictates of the party in power at the Centre can override the will of the elected assemblies in the Provinces. What reformative legislation can the State governments enact under these circumstances?

Question: Does not the Constitution reserve certain subjects inseparably to provincial jurisdiction?

Answer: Yes it does. For example the entry 24 in the States 'List declares industry as a State Subject. But see what happens. Right from the beginning, through the industrial Policy Resolution of 1948, the Centre assumed monopoly over key industries like arms and ammunition, atomic energy and railway transport. The Resolution at the same time reserved certain industries like iron and steel, coal, ship building, telephones, telegraphs etc for public enterprise which in practice meant control by the Central govern-

ment. Through a revision in the Industrial Policy Resolution in 1956 the Union acquired control over many other key industries including oil, electricity, machine tools, fertilizers, drugs etc. The Constitution confers the power on Parliament by entry 52 of the Union List to take over any industry in the State by issuing a proclamation that it is necessary for the purpose of defence or just in "public interest". Exercising these powers, Parliament enacted the Industries (Development and Regulation) Act, 1951, transferring 37 items of industry to the control of the Centre. This meant that the Centre alone could grant licenses, regulate production and distribution etc. The Act has been amended ten items since then and today 171 items divided into 38 different categories of industries are reserved for the control of the Union. It would surprise you to see how many and what kind of industries come under the declaration in the first schedule of the Act that "it is expedient in the public interest that the Union should take them under its control".

Sugar, textiles made wholly or in part of cotton, jute, wool or silk, cement, electric lamps and fans, paper including newsprint, rubber goods, leather and leather goods, vegetable oils, agricultural implements, batteries and dry cells, bicycles and their parts, hurricane lanterns, sewing and knitting machines, glass and ceramics, plastic moulded goods, razor blades, pressure cookers, cutlery, furniture, paper bags and the like, canned fruits and fruit products, milk and processed food, soaps, cosmetics and other toilet preparations, matches, zip fasteners, cigarettes, all are reserved for Union control!

Now tell me what is left for the States?

Question: What does the Union control of these industries actually mean?

Licenses

Answer: It means that the licensing and hundreds of sanctions required to launch any one of the industries mentioned in the First Schedule of the Act can be granted only by the Union government. The licensing offices of the Union government are located in five or six big cities of India. However, they work just like post offices, merely forwarding applications to Delhi for sanctions since these

regional offices have no powers to take independent decisions. The decisions are all taken in Delhi. The proposals are first examined by the Planning Commission, then by the Bureau of Public Enterprises, then by the Department of Economic affairs, then by the Director General of Technical Development, then by the Department of Environment and dozens of other agencies. Each one of these agencies can raise hundreds of technical objections and the entrepreneur must be ready at hand to clarify them, to satisfy them. You know what that means. Which entrepreneur in India except the very big can afford this process which may take ages to be completed? The procedures are in fact used to kill all possible competition from talented entrepreneurs. After all these agencies are satisfied, a project then goes for clearance to the Public Investment Board and then finally to the Union Cabinet for approval. The procedure can be more complicated if the project under consideration involves investment of Rs. 20 crores or more. Do you think India can make industrial progress with this kind of centralization stultifying all initiatives?

Question: I don't comprehend the logic of all this? Who is gaining by this centralization and all the complicated procedures?

The Planning Commission and Finance

Answer: In the beginning it must have been just the voracity of political upstarts comparable to the behaviour of a starving person who sees plenty of food before him for the first time and stodges himself with more than he can digest. Then there was Nehru's myopic vision of socialist planning requiring centralization. This vision he had contracted from his utopian assessment of progress in the Soviet Union. As the great architect of India's constitutional democracy, he conceived of an extra-constitutional body like the Planning commission although the Constitution was already loaded very much in favour of Central control. The Constitution itself only had envisaged a Finance Commission to advise the President on the division of tax revenues and financial and economic aspects of the Centre-State relations. The Planning Commission came into being in March 1950 through a resolution adopted by the Union Cabinet with the Prime Minister as its Chairman. The functions of the Planning Commission were wide-ranged from the very beginning: Assessment of material, capital and human re-

sources, formulation of a plan for their most effective utilisation, determination of priorities and allocation of resources, appraisal of progress etc.

The Planning Commission became very powerful as an executive limb of the Union government exercising total control over the developmental programmes of the State governments. It began to decide what resources are to be transferred to the States. Subsequently, the Finance Commission became very peripheral. State governments were not even consulted and were allowed no say regarding developmental plans for their regions, these were all thrust on them from the top. But we must ask where in fact do the resources come from which the Union hoards and doles out to the States as if to beggars at its own discretion. When India became free the provincial budgets in most cases were in surplus and the Central budget was in straits. The Centre by arguing that it needed finances to fulfil its responsibilities for defence, foreign relations etc. reserved for itself the power to impose the most remunerative and elastic taxes. The taxes which had little potential for growth were left to the Provinces. In fact provincial taxes began to shrink. For example land revenue for all States in 1951-52 was about 49 crores (1 crore = 10 million), 21.3 per cent of their total tax revenue. But in 1984-85 Land revenue of the states at Rs. 318.41 crores was only 2.6 per cent of their total revenue base. Likewise, the income tax raised by the Union but compulsorily shared with the States was in 1951-52 at Rs. 145.99 crores, amounting to 28.5 per cent of the total tax revenue of the Union government; whereas it shrunk to just 8.2 per cent at Rs. 1927.66 crores in the year 1984-85. The total tax revenue of the Union in 1984-85 was Rs. 23,470.59 crores and that of all States together Rs. 12,342.81 crores. On the other hand Union excise duties, which are retained completely by the Centre, have gone up from Rs. 85.78 crores in 1951-52, i.e. 16.7 per cent of its total tax base of Rs. 512.65 crores, to Rs. 11,150.84 or 47.5 per cent of it in 1984-85. So we see that the States which had the responsibilities for rural development, education, public health, welfare of minorities and the suppressed classes were left with very narrow-based and inelastic tax resources. The Union skimmed off the cream. Of the combined aggregate resources during the period 1951-85, the Union government raised 71.5 per cent and the States only 28.5 per cent of the tax resources.

Question: And how does the Union spend these resources?

Answer: During 1980-85 the Union spent 64 per cent of its total revenue resources and 47 per cent of its total capital resources on defence, interest payments and discharging other non-productive liabilities. That is how it spends the resources. Its budgets have been in the deficit continuously since 1979-80. The balance from the current revenues became negative in 1985-86. Internal borrowings have been going up resulting into large interest payments. The debt position of the Union government in 1984-85 was a total of Rs. 113,441 crores, including an internal debt of Rs. 58,537 crores, an external debt of Rs. 38,267 crores. (F.N. II) With all its talk about planning and Central efficiency, as many as ninety non-departmental undertakings of the Union government incurred a loss 1,656.34 crores in 1985-86. (F.N.III) Nearly all Public Sector enterprises have been facing great commercial losses. The State Electricity Boards incurred a loss of Rs. 1,123 crores in 1984-85. The State Transport Corporations Rs. 150-200 crores in each year of the Sixth Plan period. (F.N.IV)

That is how the Union is eating up all the resources of the country, a completely parasitical body yet putting big brotherly postures, first robbing the States of their wherewithal then doling out morsels of grace and expecting them to remain grovelling. Of course the Union has great powers to transfer resources to a State at its discretion and it does so for political advantage.

Last Alternative

Well, this should suffice as an illustration of our point of view. We are telling the Centre: hands off; we don't need your planning; we don't want your doles. We don't want your legislative supervision, your governors. Keep the functions of the Centre limited to defence, foreign relations, communications, and finance necessary to fulfil these responsibilities. Other subjects must completely be transferred to the States who should become autonomous in all domestic matters. That is the only way you can cure the political anaemia crippling Indian society. This is the thinking behind our Anandpur Sahib Resolution.

Question: Your political objectives then should appeal to the peoples and the political parties from all the States. You should be able to bring them together for a common struggle. However, no

political party in India has shown any sympathy for the objectives set out in the Anandpur Sahib Resolution. Many of them called it anti-national. (F.N.V) Why?

Answer: This is a question for the rest of India to answer. Those who call our Resolution anti-national must realize that if the Sikhs are isolated in their struggle for a just society which is conceivable only within the framework of true federalism, they may begin to feel in the same way as the Muslims had started feeling after 1937. A day may come when moderate counsel may not prevail on the diehards who, disillusioned by the Indian apathy, and thinking that the system is irredeemable may want to get out. Right now they only want safeguards and democracy. But this can change. Ambedkar had anticipated it when he was moving the Constitution for adoption. Let me quote from his speech: "Minorities are an explosive force which, if it erupts, can blow up the whole fabric of the State. The history of Europe bears ample and appalling testimony of this fact. In the history of negotiations for preventing the partition of Ireland, Redmond said to Carson: (F.N. VI)" Ask for any safeguard you like for the Protestant minority but let us have a United Ireland." Carson's reply was: "Damn your safeguards, we don't want to be ruled by you..."

NOTES

- I. The Janata Party had come to power at the Centre in March 1977 by replacing the Emergency regime of Mrs. Gandhi through a landslide victory in the general elections. Soon thereafter the Home Minister of India, Charan Singh, wrote to the Chief Ministers of nine States ruled by the Congress Party to recommend to their governors to dissolve the Assembly so that fresh election might be held to elect new governments in the States. The Chief Ministers of some of these States filed a petition in the Supreme Court contending that the letter of the Home Minister was unconstitutional. The Supreme court dismissed the petition after ruling that the letter of the Home Minister was not unconstitutional, a ruling for which the Court has been criticized by many legal reformists. However, the criticism seems unjustified since Article 131, Clause 5 of the Constitution clearly said: "Notwithstanding anything in this Constitution, the satisfaction of the President mentioned in the Clause (1) shall be final and conclusive and shall not be questioned in any court on any ground." The clause had been incorporated by Mrs. Gandhi through the 42nd Amendment Act 1976, during her Emergency regime, which the Janata

Party, having come to power on the plank of opposition to the emergency, had no hesitation in using to dismiss the Congress governments in the States.

- II. Ministry of Finance - Indian Economic Statistics, Part III Public Finance. December 1983 and December 1985.
- III. Government of India, Bureau of Public Enterprises. Public Enterprises Survey 1985-6. p.10
- IV. Government of India, Ministry of Finance - Economic Survey 1985-6. p.75
- V. In June 1983, the Government of India appointed a three member commission under the Chairmanship of Justice R.S. Sarkaria, a retired judge of the Supreme Court, to "examine and review the working or the existing arrangements between the Union and States in regard to powers, functioning and responsibilities in all spheres and recommend such changes or other measures as may be appropriate." But the terms of reference required the commission to "keep in view the social and economic development that have taken place over the years and have due regard to the scheme and framework of the Constitution which the founding fathers have so sedulously designed to protect the independence and ensure the unity and integrity of the country which is of paramount importance..."

Sarkaria Commission examined the Anandpur Sahib Resolution on Centre State relations. In its final report submitted at the end of 1988, the Commission made the following observations on the Resolution: "...the Working Committee of a Regional Party had demanded that the jurisdiction of the Union should be restricted to only four subjects... The four subjects if interpreted in their widest amplitude on the principle of implied and ancillary powers will not include any taxation items. This being so, we are of the view that under such arrangements the county can not survive as one integrated nation." (Paras 2.08.04 & 2.09.13)

- VI. John Redmond, Irish nationalist who piloted the Home Rule Bill for the whole of Ireland in 1912.

Carson of Duncairn, the lawyer and politician responsible for the conviction of Oscar Wilde on charges of homosexuality in 1895 and the "uncrowned king of Ulster" who advocated independence of Northern Ireland. He sabotaged the Home Rule Bill for a United Ireland by threatening a civil war if it was enacted.